SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS
OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30

1. REQUISITION NUMBER

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2. CONTRACT NO.	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE
			W91QF523R0013	21-Feb-2023

7. FOR SOLICITATION INFORMATION CALL:	a. NAME	b. TELEPHONE NUMBER *(No Collect Calls)*	8. OFFER DUE DATE/LOCAL TIME
	BRANDON NILE JOHNSON	804-734-4629	03:00 PM 08 Mar 2023

9. ISSUED BY CODE W91QF5

MICC FORT LEE
1830 QUARTERMASTER ROAD, BLDG 7124
FORT LEE VA 23801 1606

TEL:
FAX: 804 734 4633

10. THIS ACQUISITION IS
- [ ] UNRESTRICTED OR [X] SET ASIDE: 100 % FOR:
- [ ] SMALL BUSINESS
- [ ] WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM
- [ ] HUBZONE SMALL BUSINESS
- [ ] EDWOSB
- NAICS: 541990
- [ ] SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS
- [X] 8(A)
- SIZE STANDARD: $17,000,000

11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED
- [ ] SEE SCHEDULE

12. DISCOUNT TERMS

- [ ] 13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)

13b. RATING

14. METHOD OF SOLICITATION
- [ ] RFQ
- [ ] IFB
- [X] RFP

15. DELIVER TO CODE

SEE SCHEDULE

16. ADMINISTERED BY CODE

17a. CONTRACTOR/ OFFEROR CODE

FACILITY CODE

TELEPHONE NO.

18a. PAYMENT WILL BE MADE BY CODE

- [ ] 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

- 18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a. UNLESS BLOCK BELOW IS CHECKED [ ] SEE ADDENDUM

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/ SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	SEE SCHEDULE				

25. ACCOUNTING AND APPROPRIATION DATA

26. TOTAL AWARD AMOUNT (For Govt. Use Only)

- [ ] 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1. 52.212-4. FAR 52.212-3. 52.212-5 ARE ATTACHED. ADDENDA [ ] ARE [ ] ARE NOT ATTACHED
- [ ] 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA [ ] ARE [ ] ARE NOT ATTACHED

- [X] 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 1 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED.

- [ ] 29. AWARD OF CONTRACT: REF. OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR

31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)

30b. NAME AND TITLE OF SIGNER *(TYPE OR PRINT)*	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER *(TYPE OR PRINT)*	31c. DATE SIGNED
		TEL: EMAIL:	

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS (CONTINUED)		PAGE 2 OF 78

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/ SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	SEE SCHEDULE				

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE
	32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER ☐ PARTIAL ☐ FINAL	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT ☐ COMPLETE ☐ PARTIAL ☐ FINAL	37. CHECK NUMBER

38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	40. PAID BY

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT		42a. RECEIVED BY *(Print)*	
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER	41c. DATE	42b. RECEIVED AT *(Location)*	
		42c. DATE REC'D *(YY/MM/DD)*	42d. TOTAL CONTAINERS

Section C - Descriptions and Specifications

PEFORMANCE WORK STATEMENT

PERFORMANCE WORK STATEMENT

U.S. Army Combined Arms Support Command
TRADOC Proponent Office for Operational Contract Support - Support Services

1. **GENERAL:** This is a non-personal services contract to provide operational contract support (OCS) doctrine, organization, training, materiel, leadership and education, personnel, facilities (DOTMLPF) development and integration services in support of (ISO) Training and Doctrine Command (TRADOC) Proponent Office for Operational Contract Support (TPO-OCS). The Government shall not exercise any supervision or control over the contract service providers performing the services herein. Such contract service providers shall be accountable solely to the Contractor who, in turn is responsible to the Government.

1.1. Description of Services/Introduction: The Contractor shall provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to perform OCS DOTMLPF development and integration services ISO TPO-OCS as defined in this Performance Work Statement (PWS) except for those items specified as government furnished property and services. The Contractor shall perform to the standards in this contract.

1.2. Background: Combined Arms Support Command (CASCOM) serves as the United States Army's force modernization proponent for OCS. To execute these responsibilities, the TRADOC Commander established TPO-OCS within CASCOM headquarters. TPO-OCS develops, implements, integrates, and synchronizes DOTMLPF solutions ISO the OCS non-acquisition functions of contract support integration and contractor management, and coordinates contract support solutions with other Army agencies to enhance the Total Army's OCS capabilities. CASCOM requires Contractor expertise and services to meet these responsibilities.

1.3. Objectives: The Contractor shall provide non-personal services for TPO-OCS ISO its mission. The objectives are: identify, through analysis, OCS gaps and potential solutions; recommend OCS capability, doctrine, organization, and training solutions to the Government; develop and implement Government approved and prioritized solutions that enhance the Total Army's OCS capability.

1.4. Scope: CASCOM requires Contractor knowledge, expertise and support services to provide the following OCS DOTMLPF analytic, development, revision, and integration capabilities within the TPO-OCS for the Army's Total Force:

- **Training Development** – TRADOC Regulation (TR) 25-30 and 350-70 / TRADOC Pamphlet (PAM) 350-70 Series
- **Functional Analysis (Concept/Capability Development)** – Army Regulation (AR) 71-9 & TR 71-20, TRADOC PAM 71-20-3
- **Functional Analysis (Lessons Learned)** – AR 11-33 & Department of the Army (DA) PAM 11-33
- **Management Analysis (Force Design and Personnel)** – AR 71-32. DA PAM 71-32
- **Knowledge Management (SharePoint)** – Army Technical Publication (ATP) 6-01.1
- **Program Analysis (Materiel Development)** - AR 71-9 & TR 71-20, TRADOC PAM 71-20-3, AR 5-1
- **Doctrine Development** – AR 25-30 and TR 25-30 & 25-36

1.5. Period of Performance: This requirement is for a 12-month base period and two (2) 12-month option periods as follows:

15 March 2023 – 14 March 2024
15 March 2024 – 14 March 2025
15 March 2025 – 14 March 2026

1.6. General Information

1.6.1. Quality Control: The Contractor shall develop and maintain an effective quality control plan (QCP) to ensure that services are performed in accordance with (IAW) this PWS. The Contractor shall develop and implement procedures to identify, prevent and ensure non-recurrence of defective services. The Contractor's QCP is how the Contractor assures that work complies with the requirements of the contract. The Contractor shall deliver the QCP to the Contracting Officer (KO) and COR within 30 days of contract award. Thereafter, when changes to the QCP occur, the Contractor shall submit updated copies of the comprehensive QCP to the KO and COR within 5 working days. After acceptance of the QCP, the Contractor shall receive the KO's acceptance in writing of any proposed changes to the quality control system.

1.6.2. Quality Assurance: The Government shall evaluate the Contractor's performance under this contract IAW the Quality Assurance Surveillance Plan (QASP). This plan is primarily focused on what the Government must do to ensure that the Contractor has performed IAW the performance standards. It defines how the performance standards will be applied, the frequency of surveillance, and the minimum acceptable defect rate(s).

1.6.3. Recognized Holidays: The Contractor shall not provide services on Federal holidays (see below). If the holiday falls on a Saturday, it is observed on Friday; if the holiday falls on Sunday, it is observed on Monday.

New Year's Day	Labor Day
Martin Luther King Jr.'s Birthday	Columbus Day
President's Day	Veteran's Day
Memorial Day	Thanksgiving Day
Juneteenth	Christmas Day
Independence Day	

1.6.4. Hours of Operation: The Contractor is responsible for conducting business, between the hours of 0800 and 1700 Monday thru Friday except Federal holidays or when the Government facility is closed due to local or national emergencies, administrative closings, or similar Government directed facility closings. Contractors shall comply with installation guidance regarding delays and base closures. For other than firm fixed price contracts, the Contractor will not be reimbursed when the government facility is closed for the above reasons. The Contractor must at all times maintain an adequate workforce for the uninterrupted performance of all tasks defined within this PWS when the Government facility is not closed for the above reasons.

1.6.5. Place of Performance: The primary place of performance is CASCOM Headquarters, Building 5020, 2221 Adams Avenue, Fort Lee, VA 23801. Contractors may also provide services at temporary duty (TDY) sites throughout the Continental United States (CONUS) and Outside CONUS (OCONUS). The Contractor may perform their work at a designated, remote worksite under special or emergency circumstances or when authorized by the contracting officer's representative (COR). Under the Emergency Contingency Operations Statement Clause, the Contractor shall be primarily performing tasks that can be accomplished electronically via computer at a designated, remote worksite, but may perform tasks that require physical presence at specific places and times for limited periods.

1.6.6. Type of Contract: This requirement is for a Firm Fixed Price (FFP) contract.

1.6.7. Security Requirements: Contractor personnel shall meet the personnel security requirements for access to classified information (no higher than SECRET) while performing under this contract IAW AR 380-67, AR 380-5, and National Industrial Security Program Operating Manual (NISPOM). Contractor personnel will be U.S. citizens and have a valid investigation with final SECRET eligibility (or Interim SECRET eligibility if authorized by the COR in writing, on a case-by-case basis) in place at the start of this contract as verified by the CASCOM G-32. Contractor personnel must maintain their SECRET eligibility for the duration of the contract. The security requirements are IAW the Department of Defense (DD) Form 254, Department of Defense Contract Security Classification Specification. Contractor personnel are subject to having access to classified information up to and including SECRET, and through the compilation of sensitive unclassified information, at meetings on communications systems and cybersecurity, and through the analysis process of information pertaining to these systems and cybersecurity protocol. The Contractor must have the required Facility Clearance specified in the attached DD254 at time of proposal submission and must maintain the required Facility Clearance level for the life of the contract. The security requirements are IAW the attached DD254.

1.6.7.1. Physical Security: The Contractor shall be responsible for safeguarding all Government equipment, information and property provided for Contractor use. At the close of each work period, Government facilities, equipment, and materials shall be secured.

1.6.7.2. Key Control: The Contractor shall establish and implement methods of making sure all keys/key cards issued to the Contractor by the Government are not lost or misplaced and are not used by unauthorized persons. NOTE: All references to keys include key cards. No keys issued to the Contractor by the Government shall be duplicated. The Contractor shall develop procedures covering key control that shall be included in the QCP. Such procedures shall include turn-in of any issued keys by personnel who no longer require access to locked areas. The Contractor shall immediately report any occurrences of lost or duplicate keys/key cards to the KO.

1.6.7.2.1. Lost keys shall be reported to the COR and the KO. In the event keys, other than master keys, are lost or duplicated, the Contractor shall, upon direction of the KO, re-key or replace the affected lock or locks. In the event a master key is lost or duplicated, the Contractor shall be responsible for replacement of all locks and keys for that system/facility.

1.6.7.2.2. The Contractor shall prohibit the use of Government issued keys/key cards by any persons other than the Contractor's employees. The Contractor shall prohibit the opening of locked areas by Contractor employees to permit entrance of persons other than Contractor employees engaged in the performance of assigned work in those areas, or personnel authorized entrance by the KO.

1.6.7.3. Lock Combinations: The Contractor shall establish and implement methods of ensuring that no lock combinations are revealed to unauthorized persons. The Contractor shall ensure that lock combinations are changed when personnel having access to the combinations no longer have a need to know such combinations.

1.6.8. Post Award Conference/Periodic Progress Meetings: The Contractor agrees to attend any post award conference convened by the contracting activity or contract administration office IAW Federal Acquisition Regulation (FAR) Subpart 42.5. The KO, COR, and other Government personnel, as appropriate, may meet periodically with the Contractor to review the Contractor's performance. At these meetings the KO will apprise the Contractor of how the Government views the Contractor's performance and the Contractor will apprise the Government of problems, if any, being experienced. Appropriate action shall be taken to resolve outstanding issues. These meetings shall be at no additional cost to the Government.

1.6.9. Contracting Officer's Representative: The COR will be identified by separate letter. The COR monitors all technical aspects of the contract and assists in contract administration. The COR is authorized to perform the following functions:

- assure that the Contractor performs the technical requirements of the contract: perform inspections necessary in connection with contract performance
- maintain written and oral communications with the Contractor concerning technical aspects of the contract
- issue written interpretations of technical requirements, including Government drawings, designs, specifications
- monitor Contractor's performance and notifies the KO of any deficiencies
- coordinate availability of Government furnished property and provide site entry of Contractor personnel

A letter of designation issued to the COR, a copy of which is sent to the Contractor, states the responsibilities and limitations of the COR, especially regarding changes in cost or price, estimates or changes in delivery dates. The COR is not authorized to change any of the terms and conditions of the resulting contract.

1.6.10. Key Personnel: The following personnel with identified qualifications are considered key personnel by the Government. The Contractor shall designate, in writing, a primary and alternate contract manager who shall be responsible for the performance of the work. One of the personnel identified as key personnel may be designated as the contract manager and alternate. This designation shall be made not later than two business days following contract award. The contract manager or alternate shall have full authority to act for the Contractor on all contract matters relating to daily operation of this contract. The contract manager or alternate shall be available between

0800 and 1700, Monday thru Friday except Federal holidays or when the Government facility is closed for administrative reasons. The contract manager shall submit a monthly report updating the COR and KO on the status of work under the contract.

1.6.10.1. **Training Developer III (OCS Training Development)**

1.6.10.1.1. Shall have a minimum of an active SECRET clearance.

1.6.10.1.2. Shall have a minimum of a Bachelor's degree.

1.6.10.1.3. Shall have a minimum of 6 years' experience using Microsoft Office, Microsoft Office 365 and Adobe Pro.

1.6.10.1.4. Shall have 6 years of increasing experience in military training development, preferably Army training development with processes and products identified in TR Reg 350-1

1.6.10.1.5. Experience in OCS is desired, but not required.

1.6.10.2. **Optional-Functional Analyst II (OCS Capabilities/Concepts)**

1.6.10.2.1. Shall have a minimum of an active SECRET clearance.

1.6.10.2.2. Shall have a minimum of Bachelor's degree.

1.6.10.2.3. Shall have a minimum of 6 years' experience using Microsoft Office, Microsoft Office 365 and Adobe Pro.

1.6.10.2.4. Shall have 4 years' experience in concept, Concept of Operations (CONOPS), White Paper development IAW TRADOC PAM 71-20-3.

1.6.10.2.5. Shall have 4 years' experience in capability-based assessment IAW TR 71-20.

1.6.10.2.6. Experience in OCS is desired, but not required.

1.6.10.3. **Optional - Management Analyst II (Force Design and Personnel)**

1.6.10.3.1. Shall have a minimum of an active SECRET clearance.

1.6.10.3.2. Shall have a minimum of Bachelor's degree.

1.6.10.3.3. Shall have a minimum of 6 years' experience using Microsoft Office, Microsoft Office 365 and Adobe Pro.

1.6.10.3.4. Shall have a minimum of 4 years' experience in force development IAW AR 71-32.

1.6.10.3.5. Shall have four years' experience retrieving data from the Force Management System website (FMSWeb).

1.6.10.3.6. Shall have 4 years' experience with The Army Authorization Documents System (TAADS).

1.6.10.3.7. Shall have 3 years' experience the Military Occupational Classification System (MOCS) and Personnel Authorization Module website (PAMWEB).

1.6.10.3.8. Experience in OCS is desired, but not required.

1.6.10.4. **Optional - SharePoint Developer (Knowledge Management)**

1.6.10.4.1. Shall have a minimum of an active SECRET clearance.

1.6.10.4.2. Shall have a minimum of Bachelor's degree.

1.6.10.4.3. Shall have a minimum of 6 years' experience using Microsoft Office, Microsoft Office 365 and Adobe Pro.

1.6.10.4.4. Shall have minimum of 4 years' experience with Microsoft SharePoint site and page management and development.

1.6.10.4.5. Shall have Microsoft certifications in SharePoint site/page administration, site/page design, and data analytics

1.6.10.5. **Optional - Functional Analyst II (OCS Lessons Learned)**

1.6.10.5.1. Shall have a minimum of an active SECRET clearance.

1.6.10.5.2. Shall have a minimum of Bachelor's degree.

1.6.10.5.3. Shall have a minimum of 6 years' experience using Microsoft Office, Microsoft Office 365 and Adobe Pro.

1.6.10.5.4. Shall have a minimum of 4 years' experience in collection, analysis, and trend identification of military operations.

1.6.10.5.5. Shall have a minimum of 3 years' experience using the Joint Lessons Learned System (JLLIS)

1.6.10.5.6. Experience in OCS is desired, but not required.

1.6.10.6. **Optional - Training Developer II (OCS Training Development)**

1.6.10.6.1. Shall have a minimum of an active SECRET clearance.

1.6.10.6.2. Shall have a minimum of a Bachelor's degree.

1.6.10.6.3. Shall have a minimum of 6 years' experience using Microsoft Office, Microsoft Office 365 and Adobe Pro.

1.6.10.6.4. Shall have 4 years of increasing experience in military training development, preferably Army training development with processes and products identified TR 350-1

1.6.10.6.5. Experience in OCS is desired, but not required.

1.6.10.7. **Optional - Program Analyst II (OCS Material Development)**

1.6.10.7.1. Shall have a minimum of an active SECRET clearance.

1.6.10.7.2. Shall have a minimum of Bachelor's degree.

1.6.10.7.3. Shall have a minimum of 6 years' experience using Microsoft Office, Microsoft Office 365 and Adobe Pro.

1.6.10.7.4. Shall have a minimum of four years' experience in business systems development or program systems IAW AR 71-9 and AR 5-1.

1.6.10.8. **Optional - Writer/Editor II (OCS Doctrine)**

1.6.10.8.1. Shall have a minimum of an active SECRET clearance.

1.6.10.8.2. Shall have a minimum of Bachelor's degree.

1.6.10.8.3. Shall have a minimum of 6 years' experience using Microsoft Office, Microsoft Office 365 and Adobe Pro.

1.6.10.8.5. Shall have a minimum of five (5) years' experience writing and editing military doctrine and/or specialized experience including: demonstrated experience in creating, editing, and proofreading documents, including technical publications IAW TR 25-30 and 25-36.

1.6.10.8.6. Experience in OCS is desired, but not required.

1.6.11. Identification of Contractor Employees: All contract personnel attending meetings, answering Government telephones, and working in other situations where their contractor status is not obvious to third parties are required to identify themselves as such to avoid creating an impression in the minds of members of the public that they are Government officials. They must also ensure that all documents or reports produced by contractors are suitably marked as Contractor products or that Contractor participation is appropriately disclosed. All Contractor personnel must always wear and visibly display a contractor-identification badge while performing services on Government facilities and on TDY when working in their official capacity as Contractor employees. As a minimum, the identification badge shall display the name of the company, name of the employee and include a recent color photo of the employee. No personal information or social security numbers shall be identified on the Contractor's identification badge.

Contractor workforce must comply with all personal identity verification requirements (FAR clause 52.204-9, Personal Identity Verification of Contractor Personnel) as directed by DOD, HQDA and/or local policy. In addition to the changes otherwise authorized by the changes clause of this contract, should the Force Protection Condition (FPCON) at any individual facility or installation change, the Government may require changes in Contractor security matters or processes.

1.6.12. Contractor Travel: Contractor shall be required to travel CONUS or OCONUS during the performance of this contract to attend meetings. The COR will provide advance notification to the maximum extent possible of travel requirements and will approve all Contractor travel in advance. Should travel be needed, Contractor will be authorized travel expenses consistent with the substantive provisions of the Joint Travel Regulation (JTR) and the limitation of funds specified in this contract. All travel requires Government approval/authorization and notification to the COR. Contractor(s) shall prepare trip reports on all travel within 5 days of completion of travel. Trip reports shall be submitted to the COR.

1.6.13. Data Rights: The Government has unlimited rights to all documents/material produced under this contract. All documents and materials produced under this contract shall be Government owned and are the property of the Government with all rights and privileges of ownership/copyright belonging exclusively to the Government. These documents and materials may not be used or sold by the Contractor without written permission from the KO. All materials supplied to the Government shall be the sole property of the Government and may not be used for any other purpose. This right does not abrogate any other Government rights.

1.6.14. Organizational Conflict of Interest: Contractor and sub-contractor personnel performing work under this contract are not authorized to receive, have access to or participate in the development of proprietary or source selection information (e.g., cost or pricing information, budget information or analyses, specifications, or work statements, etc.) or perform evaluation services which may create a current or subsequent Organizational Conflict of

Interests (OCI) as defined in FAR Subpart 9.5. The Contractor shall notify the KO immediately whenever it becomes aware that such access or participation has taken place.

1.6.15. Installation Access: Fort Lee conducts identification checks of all adults (18 years and older) entering the post. Anyone coming to Fort Lee for the FIRST TIME without a federal identification card, or with an expired access pass, MUST go to the Visitor Control Center (VCC) with a valid government-issued photo identification (such as a driver's license) to receive an initial background check. Those already entered into the system with a valid access pass, or possessing a Common Access Card (CAC), Military identification, Military Dependent identification, or a federal government-issued PIV, may enter post as normal. For FIRST TIME visitors or those with an expired pass follow this link for more information https://home.army.mil/lee/index.php/my-fort-lee/all-services/installation-access .

1.6.16. Safety: While performing services at Fort Lee, Contractor employees shall comply with the Fort Lee Commander's Safety Policy (available at https://cascom.army.mil/G_Staff/sgs/policies/21-27.pdf) and shall complete Safety Awareness training on an annual basis.

1.6.17. Dress Code: Contractor personnel attire shall be business casual (ie. slacks/skirt, collared shirt, etc) and maintain a neat appearance. The Contractor shall ensure that employee clothing is clean, well maintained and serviceable.

1.6.18. Conduct of Employees: The Contractor is fully responsible for the performance and conduct of their employees while on post performing work under this contract. The Contractor shall not allow any employee to perform work under this contract while under the influence of alcohol, drugs, or any other incapacitating agent. Military police and any other enforcement personnel on post have the right to deny entry to post or remove from post any Contractor employee for misconduct that endangers the health or safety of people or property or for any reasons of security. In addition, the Installation Commander may bar any individual from entering the post under the authority of 18 U.S.C. 1382. Removal from post of a Contractor employee IAW the above will not relieve the Contractor from the requirement to meet all the terms. This is in addition to any other rights of the Government under the contract.

2. **DEFINITIONS AND ACRONYMS:**

2.1. DEFINITIONS.

2.1.1. CONTRACTOR. A supplier or vendor awarded a contract to provide specific supplies or service to the Government. The term used in this contract refers to the prime.

2.1.2. CONTRACTING OFFICER. A person with authority to enter into, administer, and or terminate contracts, and make related determinations and findings on behalf of the Government. Note: The only individual who can legally bind the Government.

2.1.3. CONTRACTING OFFICER'S REPRESENTATIVE (COR). An employee of the U.S. Government appointed by the KO to administer the contract. Such appointment shall be in writing and shall state the scope of authority and limitations. This individual has authority to provide technical direction to the Contractor as long as that direction is within the scope of the contract, does not constitute a change, and has no funding implications. This individual does NOT have authority to change the terms and conditions of the contract.

2.1.4. DEFECTIVE SERVICE. A service output that does not meet the standard of performance associated with the PWS.

2.1.5. DELIVERABLE. Anything that can be physically or digitally delivered and may include non-manufactured things such as meeting minutes or reports.

2.1.6. KEY PERSONNEL. Contractor personnel that are evaluated in a source selection process and that may be required to be used in the performance of a contract by the Key Personnel listed in the PWS. When key personnel are used as an evaluation factor in best value procurement, an offer can be rejected if it does not have a firm commitment from the persons that are listed in the proposal.

2.1.7. PHYSICAL SECURITY. Actions that prevent the loss or damage of Government property.

2.1.8. QUALITY ASSURANCE. The Government procedures to verify that services being performed by the Contractor are performed according to acceptable standards.

2.1.9. QUALITY ASSURANCE SURVEILLANCE PLAN (QASP). An organized written document specifying the surveillance methodology to be used for surveillance of Contractor performance.

2.1.10. QUALITY CONTROL. All necessary measures taken by the Contractor to assure that the quality of an end product or service shall meet contract requirements.

2.1.11. SUBCONTRACTOR. One that enters into a contract with a prime contractor. The Government does not have privity of contract with the sub-contractor.

2.1.12. WORKDAY. The number of hours per day the Contractor provides services IAW the contract.

2.1.12. WORK WEEK. Monday through Friday, unless specified otherwise.

2.2. ACRONYM

ADDIE	analysis, design, development, implementation, and evaluation
ALU	Army Logistics University
AR	Army Regulation
ASI	additional skill identifier
ATP	Army Technical Publication

CAC	common access card
CASCOM	Combined Arms Support Command
CBA	capabilities based assessment
CDID	Capabilities Development and Integration Directorate
CFTE	contract full time equivalent
COE	centers of excellence
COI	courses of instruction
CONOPS	concept of operations
CONUS	continental United States
COR	contracting officer's representative
CRM	course resource model
CTSSB	critical task and site selection board
DA	Department of the Army
DD Form	Department of Defense Form
DOD	Department of Defense
DOIM	Directorate of Information Management
DOTMLPF	doctrine, organization, training, materiel, leadership and education, personnel, facilities
DOTMLPF-P	doctrine, organization, training, materiel, leadership and education, personnel, facilities - policy
DOW	description of work
EDate	effective date
EEA	essential elements of analysis
ETV	estimated time values
FAR	Federal Acquisition Regulation
FD	final draft
FDD	Force Development Directorate
FDU	force design update
FFP	firm fixed price
FM	Field Manual
FMSWeb	Force Management System website
FPCON	force protection condition
FSC	Federal Service Code
FSD	final signature draft
FY	fiscal year
GFE	government furnished equipment
GFP	government furnished property
HQDA	Headquarters, Department of the Army
IAW	in accordance with
ID	initial draft
ISO	in support of
JLLIS	Joint Lessons Learned Information System
JTR	Joint Travel Regulation
KO	contracting officer

LAN	local area network
MOCS	Military Occupational Classification System
NISPOM	National Industrial Security Program Operating Manual
NLT	not later than
OCI	organizational conflict of interests
OCONUS	outside continental United States
OCS	operational contract support
OIL	observation, insight, lesson
PAM	Pamphlet
PAMWEB	Personnel Authorization Module website
PD	program directive
POC	point of contact
POI	program of instruction
POP	period of performance
PSC	Product Service Code
PWS	performance work statement
QASP	quality assurance surveillance plan
QCP	quality control plan
SBL	Sustainment Battle Lab
SHARP	Sexual Harassment/Assault Response & Prevention
TAADS	The Army Authorization Documents System
TDY	temporary duty
TED	Training and Education Development
TED-T	Training and Education Development Toolbox
TPO-OCS	TRADOC Proponent Office for Operational Contract Support
TR	TRADOC Regulation
TRADOC	Training and Doctrine Command
TTP	tactic, technique, and procedure
U.S.C	United States Code
UIC	Unit Identification Code
VCC	Visitor Control Center
VTC	video teleconference
WM	workload management

3. GOVERNMENT FURNISHED ITEMS AND SERVICES:

3.1. Government Furnished Property (GFP). The Government will furnish certain GFP to the Contractor for use in performing work under this PWS when work is performed at the Government site. GFP consists of Government Furnished Facilities and Government Furnished Equipment. The Government will also provide infrastructure- type services to the Contractor such as utilities and access to a Local Area Network (LAN). Refusal to accept some or all of the GFP offered by the Government shall not relieve the Contractor from performance but will relieve the Government from the obligation of providing the same or similar GFP at a future date. The Contractor shall not use GFP for other than the performance of work under this PWS and shall not remove GFP from Fort Lee, VA or other supported areas without approval of the COR.

3.1.1. The Contractor shall be responsible for proper care, maintenance, and use of Government property in its possession or control from the time of receipt until properly relieved of stewardship responsibility.

3.2. Government Furnished Equipment (GFE). The Government will provide Contractor personnel who perform at the Government site with office equipment. The Government will provide Contractor personnel access to pens, paper, computer, monitor, keyboard and mouse, scanners, fax machines, copiers, printers, telephones, and other information systems to meet the requirements under this PWS. The Government will provide the necessary workspace for the contracted personnel to provide the support outlined in the PWS. These facilities and equipment shall only be used for the performance of this contract. The Contractor shall not modify any GFE, without prior written approval of the KO.

3.3. Government Furnished Utilities: All utilities in the Government facility will be available for the Contractor's use in performance of tasks outlined in this PWS. The Contractor shall provide its employees training/instruction in utility conservation practices. The Contractor shall be responsible for operating under conditions that preclude the waste of utilities, being practical, and what most people would consider reasonable when using the Government facilities.

3.4. Information Management Systems. The Government will provide appropriate Desktop Computing Services and Network Support to the Contractor. Government Furnished information management systems shall be utilized for "Official Business" only, in direct support of this contract. Contractor owned software and hardware is prohibited on Government provided workstations/computers (this includes fax machines). Additionally, non-Government provided workstations cannot be connected to the Fort Lee, VA or any other installation's LAN where services are being performed without prior approval by the Directorate of Information Management (DOIM). Use of all workstations on the Fort Lee, VA installation and any other installation's LAN constitutes consent to security monitoring.

3.4.1. The Government will make available all necessary and readily identified information to include literature searches, documents, databases, publications, and correspondence; the Contractor shall review this information and request additional documentation as appropriate to execute tasks specified within this PWS. The Contractor shall coordinate efforts and resolve difficulties by means of coordination with the COR.

3.5. Government Furnished Training IAW Memorandum, Office of the Deputy Chief of Staff, G-3/5/7, 4 Aug 17, SUBJECT: Contractor Attendance at Army-Provided Training, it is Army policy that Contractors will NOT be charged a tuition fee for mandatory training, "Contractors may only be trained in skills they are not required to bring to the job, such as, command unique rules, practices, procedures and/or systems that are essential for the Contractor's satisfactory performance. This type training is considered mandatory/required and will be identified in the contract. The cost of the mandatory/required training is the full responsibility of the Army/command. The command requiring or providing the training may not seek payment from the Contractor. All such training will be scrutinized and validated as essential to satisfy contract performance." For specific Government-provided training, it will be identified as "mandatory" in the contract, and it will also state that elective training/courses is NOT permitted. Further, contracts will identify and publish mandatory courses of instruction (COI) required for Contractors, and also ensure mandatory COIs are identified by position in contracts.

3.5.1. **Operational Contract Support Course** - Contract employees shall attend and complete the two-week OCS Course at Army Logistics University (ALU) as part of their routine duties in the performance of this contract. Contractor shall coordinate with the COR to schedule attendance for their employees at the course.

3.5.2. Contractor employees are required to complete all annual training requirements listed in Table F-1 of AR 350-1. Additional training, when required, will be provided during normal duty hours and at no cost to the Contractor.

4. CONTRACTOR FURNISHED ITEMS AND RESPONSIBILITIES:

4.1. General: The Contractor shall furnish all supplies, equipment, facilities and services required to perform work under this contract that are not listed under Section 3 of this PWS.

4.2. Security Clearance: The Contractor's employees, performing work ISO this contract shall have been granted a SECRET security clearance from the Defense Industrial Security Clearance Office. The DD 254 is provided as Attachment.

5. Specific Tasks:

5.1. Basic Services.
5.1.1. The Contractor shall provide services for OCS DOTMLPF development and integration ISO TPO-OCS. When hiring personnel, the Contractor shall keep in mind that the stability and continuity of the workforce are essential. To ensure the uninterrupted performance of all tasks defined within this PWS, the Contractor shall maintain an adequate workforce with the requisite technical expertise, experience, and skills. The Contractor shall notify the KO or COR of any actual or potential deficiencies in personnel availability. This provision does not relieve the Contractor of any performance requirements.
5.1.2. The Contractor shall attend informational, coordination, and other types of meetings during the execution of this contract with offices external to TPO-OCS. The Contractor shall provide a memorandum to the COR, TPO-OCS Director, and Deputy NLT 2 working days after the meeting identifying the purpose, key participants, topics presented, tasks for TPO-OCS, and any decisions made affecting TPO-OCS.
5.1.3. Contractor personnel shall complete all training required by this contract and local policy. The Contractor will submit training certificates or a memorandum of record when training certificates were not issued NLT 30 days after start of performance and NLT 1 year following initial training.
5.2. General Tasks. Drafts shall be free of format, spelling, grammatical, punctuation, text, word usage, syntax, graphics, proper use of abbreviations and style errors.

5.2.1. Writing style shall comply with standards established in TR 25-30 and AR 25- 50.

5.2.2. Graphics shall comply with Field Manual (FM) 1-02.2.

5.2.3. Terminology and abbreviations shall comply with FM 1-02.1 and be used consistently throughout the publication.

5.2.4. Doctrinal preparation, production and reviews shall comply with processes established in TR 25-36 and the TRADOC-mandated Army Publishing Information Program doctrinal template, and meet bibliographic citation, legal, forms management and regulatory requirements.

5.2.5. The Contractor shall prepare, produce and process training and education products in compliance with TR 25-36 and TRADOC PAM 350-70 series.

5.2.6. All draft deliverables in electronic media shall be deleted or erased once the Government has accepted the final version. Final versions of products under this PWS shall be delivered to the Government via e-mail, SharePoint, MS Teams, or share drive.

5.2.7. Contractor personnel performing work under PWS 5.3 thru 5.9 shall attend weekly IPRs with COR and other USG personnel. unless granted an exception by the COR. The Contractor shall provide status slides of work NLT 2 business days prior to meeting

5.3. **Training Developer III (OCS Training Development) (Ratio of 1:1)**.

5.3.1. **OPTIONAL LABOR - Training Development II (OCS Training Development) (Ratio of 1:1)**.

5.3.2. The Contractor shall review and analyze all OCS-related current tasks, doctrine, and policy using the analysis, design, development, implementation, and evaluation (ADDIE) process to create an OCS Total Task List and provide the Government with a memorandum recommending individual and collective OCS tasks by echelon, organization, and staff element not later than (NLT) 2 months after start of period of performance (POP).

5.3.3. The Contractor shall conduct a Critical Task and Site Selection Board (CTSSB) IAW the process outlined in TRADOC PAM 350-70-1 and the Training and Education Development (TED) Course Resource Model (CRM) Descriptions of Work (DOW) workbook to develop a Critical Task List, Learning Requirement List, and a memorandum for TPO-OCS Director NLT 4 months after POP start date. The Contractor shall submit minutes from the CTSSB NLT 2 working days after the completion of the board.

5.3.4. The Contractor shall conduct an individual task analysis to develop and submit a memorandum to the TPO-OCS, Director recommending prioritized revision or development of OCS individual tasks NLT 4 months after the POP start date.

5.3.5. The Contractor shall revise or develop OCS individual tasks using the processes and tools identified in TRADOC PAM 350-70-1. Product delivery schedule based on TED CRM DOW workbook estimated time values (ETV) and Government prioritization.

5.3.6. The Contractor shall conduct a collective task analysis to develop and submit a memorandum to the TPO-OCS, Director recommending prioritized revision or development of OCS collective tasks NLT 4 months after the POP start date.

5.3.7. The Contractor shall revise or develop OCS collective tasks using the processes and tools identified in TRADOC PAM 350-70-1. Contractor shall develop applicable OCS training and education products to include Soldier Training Plan and Officer Foundational Standards listed in the TED CRM DOW workbook and prioritized by the Government. Product delivery schedule based on TED CRM DOW workbook estimated time values (ETV) and Government prioritization.

5.3.8. Using the ADDIE process, the Contractor shall develop a memorandum recommending revision or development of applicable training products to include Distance Learning options, identified and described in TR 350-70, TRADOC PAM 350-70-series, and the TED CRM DOW workbook to support OCS training and education NLT 5 months from POP start date.

5.3.9. The Contractor shall develop applicable OCS training and education products as listed in the TED CRM DOW workbook and prioritized by the Government from Contractor input provided in para 5.3.5. Product delivery schedule based on TED CRM DOW workbook ETV and Government prioritization.

5.3.10. The Contractor shall review, maintain and update OCS-related training and education products IAW timelines and the ETV provided in the TED CRM DOW workbook and Government prioritization.

5.3.11. The Contractor shall assist ALU OCS Course Instructors with the revision of the OCS Course (9E-SI3C/ASI3C/950-ASI3C) Program of Instruction (POI) and lesson plans. All products will be completed and approved by the Government prior to the fiscal year FY 24 academic school year.

5.3.12. The Contractor shall collect and provide OCS training development workload data to the COR, to include historical achievements and projections for future workload requirements using the TED CRM DOW workbook. Workload data shall be submitted prior to the timelines established in the TED Workload Management (WM) Process Guide found in the Training and Education Development Toolbox (TED-T) at https://cacmdc.army.mil/armyu/TEDT/Pages/Toolbox.aspx .

5.4. **OPTIONAL LABOR - Functional Analysis II (OCS Concept/Capability Development) (Ratio 1:1)**. The Contractor shall assist in developing, writing, experimenting, assessing, integrating, staffing, and documenting OCS visions and concepts into appropriate future products in coordination with the Sustainment Capabilities Development and Integration Directorate (CDID). Additionally, the Contractor shall research, analyze, and develop OCS requirements ISO the Capabilities Based Assessments (CBA). Primary areas of focus include Army Division redesign, Army 2030, and Army 2035 and beyond.

5.4.1. The Contractor shall review scenarios, coordinate with the Sustainment Battle Lab (SBL) and other Centers of Excellence (COE) to research, draft and integrate OCS capabilities and limitations within emerging concepts, seminars, wargames, and other experimentation efforts. The Contractor’s integration efforts shall comply with procedures established in TR 71-20.

5.4.2. The Contractor shall review and draft input on emerging concepts in coordination with the SBL and other relevant agencies. Contractor's responses shall be reviewed by the COR IAW deadlines established by the appropriate external agency.

5.4.3. The Contractor shall provide meeting summary of all engagements to the COR, TPO-OCS Director, and Deputy.

5.4.4 The Contractor shall develop exercise injects and experimentation essential elements of analysis (EAA) and shall submit to the COR, TPO-OCS Director, and Deputy for approval prior to incorporation into any exercise or experiment.

5.4.5. The Contractor shall develop and maintain an OCS doctrine, organization, training, materiel, leadership and education, personnel, facilities – policy (DOTMLPF-P) assessment using the fielded force as the baseline and identifying/addressing OCS gaps, limitations, and shortfalls pertaining to current fielded force, the Army Division Redesign, Army 2030, and Army 2035and Beyond.

5.4.6. The Contractor shall develop OCS-related white papers and CONOPS to support Army Division Redesign, Army 2030, and Army 2035 and Beyond IAW TR 71-20.

5.5. **OPTIONAL LABOR - Management Analysis II (OCS Force Design and Personnel) (Ratio 1:1)**. The Contractor shall research, analyze, coordinate, and develop OCS-related force design updates (FDUs) and MOCS updates.

5.5.1. The Contractor shall establish and maintain coordination with CASCOM Force Development Directorate (FDD) and FDDs at other TRADOC COEs to identify and synchronize force design requirements and shall establish and maintain coordination with personnel proponent offices at CASCOM and other TRADOC COEs to identify and synchronize MOCS requirements.. The Contractor shall establish and maintain point of contact (POC) list for action officers at appropriate COEs.

5.5.2. The Contractor shall participate in force design and personnel coordination meetings in person and by telephone and video teleconference (VTC) preparing and submitting meeting summaries to advise and make recommendations via memorandums on Force Development and personnel issues to the COR, TPO Director, and Deputy.

5.5.3. The Contractor shall research, analyze, and prepare FDU packages IAW AR 71-32 and meet timelines established by the relevant FDD.

5.5.4. The Contractor shall research, analyze and recommend OCS personnel solutions and prepare input to MOCs updates upon approval by the TPO-OCS Director or Deputy. The Contractor's input shall meet timelines established by the appropriate external agencies.

5.5.5. 3C Battlefield Laydown - The Contractor shall on a quarterly basis research, analyze, and report Total Army 3C additional skill identifier (ASI) required, authorized, and filled positions, and trained personnel filling 3C ASI positions by component, command, and unit based on approved effective date (EDate) as of current date and approved EDate thru end of FY. Deliverables include updating 3C OCS Laydown chart, FMSWEB 3C data pull in Excel/Access, and resulting analysis of the FMS WEB reported position against Fill/Trained reports from unit data.

5.6. **OPTIONAL LABOR – SharePoint Developer (Knowledge Management) (Ratio 1:1)**. The Contractor shall provide TPO-OCS SharePoint site, page, and content maintenance and development services.

5.6.1. The Contractor shall analyze existing TPO-OCS SharePoint sites to suggest possible enhancements/upgrades to include an ability to collaborate with external organizations and provide initial recommendations to the COR and TPO Leadership NLT 2 months after POP start date and on a quarterly basis thereafter by memorandum for approval.

5.6.2. The Contractor shall create, edit, and delete pages, lists, folders, libraries, documents, and calendars on the TPO-OCS and OCS Resource Portal sites based on approved recommendations.

5.6.3. The Contractor shall coordinate with TPO-OCS workforce to develop SharePoint solutions that link training products with doctrinal references for use by operational forces conducting Home Station Unit and self-development training.

5.6.4. The Contractor shall design, develop, and implement a collaboration solution that allows operational forces to collaborate with each other and TPO-OCS on OCS related topics. Solution fully operational NLT start of FY 24.

5.6.5. The Contractor shall develop tactics, techniques, and procedures (TTPs)/business rules to enable the TPO-OCS workforce to populate and edit site and page content IOT ensure content remains accurate and current. TTPs shall be incorporated into solution development timelines and consolidated into site Standard Operating Procedures/Business Rules annually NLT the last month of the FY.

5.7. **OPTIONAL LABOR - Functional Analysis I (OCS Lessons Learned) (Ratio 1:1)**. The Contractor shall collect, review, analyze, and document OCS observations, lessons and best business practices from experimentation, simulations, exercises, assistance visits, training, and ongoing military operations.

5.7.1. The Contractor shall coordinate and conduct interviews with key leaders and staff members regarding observations, insights, lessons (OILs) and best practices during operations, exercises, and other activities involving OCS, and record them in the JLLIS NLT 1 week after conducting interview.

5.7.2. The Contractor shall coordinate with CASCOM G3 to prepare, conduct and analyze targeted OCS surveys, and provide results to the COR and TPO-OCS leadership NLT 2 weeks after close of the survey.

5.7.3. The Contractor shall review and analyze OILs to identify trends and recommend potential DOTMLPF-P solutions to the COR and TPO leadership for implementation on a quarterly basis.

5.7.4. The Contractor shall review, analyze, and identify lessons, trends, and best practices with OCS significant to the Joint community, and once approved by the COR and TPO leadership create a specific JLLIS cabinet with approved items, and submit to the Joint OCS Lessons Learned Manager via linked JLLIS cabinet annually.

5.8. **OPTIONAL LABOR - Program Analysis II (Materiel Development) (Ratio 1:1)**. The Contractor shall analyze current OCS processes, business systems and capability gaps and recommend potential materiel solutions.

5.8.1. The Contractor shall coordinate with subject matter experts within Army, joint and DoD agencies and solicit feedback from deployed units using presentations, surveys, interviews and observations to identify existing materiel requirements, capability gaps, and potential solutions. Results will be documented in memorandum format and submitted to the COR and TPO leadership for concurrence and approval within 5 working days.

5.8.2. The Contractor shall coordinate, as requested by the COR, recommended solutions with Government Program Managers and appropriate agencies providing a meeting summary NLT 2 working days after an engagement to enable successful testing, fielding and training on materiel solutions that impact Army OCS capabilities.

5.8.3. The Contractor shall schedule, coordinate, and participate in conferences, meetings and in-progress reviews to ensure effective synchronization of testing, fielding and training efforts for materiel solutions, and shall prepare and submit presentations NLT 2 day prior to execution and written summaries NLT 2 working days after all meetings, conferences and in-progress reviews to the COR.

5.9. **OPTIONAL LABOR – Writer/Editor II (Doctrine Development) (Ratio 1:1)**. The Contractor shall research, draft, staff, adjudicate comments and submit to the COR OCS doctrinal products, to include initial program directives, initial drafts, final drafts, final approval drafts, and final electronic files, based on requirements identified by TPO-OCS.

5.9.1. The Contractor shall Review for Assessment ATP 4-10 and ATP 4-10.1 on an 18 month cycle from the date of the publication IAW TR 25-30 and provide TPO-OCS Director with a memorandum recommending no change, minor change, or major revision of the current document.

5.9.2. The Contractor shall develop change document or major revision of the publication based on proponent decision from Reviews for Assessment IAW procedures and timelines identified in TR 25-30. Product deliverables include Program Directive (PD), Initial Draft (ID), Final Draft (FD), and the Final Signature Draft (FSD).

5.9.3. The Contractor shall adjudicate comments from the PD, ID, and FD staffing and provide the adjudicated change resolution matrix (CRM) to the COR for approval within 2 working days of adjudication, then use the comments to make revisions prior to submission of the next draft IAW TRADOC REG 25-30.

5.9.4. The Contractor shall Review for Comment approximately 8 policy and doctrine documents per month for inclusion and correctness of OCS content. The Contractor shall provide a CRM of recommended comments to the COR for Government review and submission NLT 5 Working days prior to suspense.

5.9.5. The Contractor shall analyze the need for, and recommend, a prioritized list of topics in memorandum format for OCS Handbooks to augment doctrinal manuals and training products NLT 3 months from POP start date, then annually thereafter.

5.9.6. The Contractor shall develop OCS Handbooks based on Government approved prioritization and coordinated timelines coordinated and agreed to between the Government and Contractor.

5.9.7. The Contractor shall provide a monthly doctrinal running estimate to the COR for review and submission by the Government NLT 3 days prior to suspense established by CASCOM G-3 Doctrine Branch.

5.9.8. The Contractor shall gather, prepare, and submit annual doctrinal workload data, to include historical achievements and projections for future workload requirements IAW the schedule provided in TR 25-30 to the COR for review and submission by the Government to the CASCOM Doctrine Branch.

5.10. Service Contracting Reporting: The contractor shall report, annually by October 31, for services performed under this contract during the preceding Government fiscal year (October 1-September 30). The contractor shall report the following information: Contract Number, total dollar amount invoiced for services performed during the period Government fiscal year under the contract, the number of Contractor direct labor hours expended on the services performed during the previous Government fiscal year, and data reported by subcontractors (as applicable). This information shall be submitted via the internet at https://www.sam.gov.

The required data fields include:

(1) Contracting Office, KO, Contracting Officer's Representative
(2) Contract number, including task and delivery order number
(3) Beginning and ending dates covered by reporting period
(4) Contractor name, address, phone number, e-mail address, identity of Contractor employee entering data
(5) Estimated direct labor hours (including sub-contractors)
(6) Estimated direct labor dollars paid this reporting period (including sub-contractors)
(7) Total payments (including sub-contractors)
(8) Predominant Product Service Code (PSC)/Federal Service Code (FSC) reflecting services provided by Contractor (and separate predominant PSC/FSC for each sub-contractor if different)
(9) Estimated data collection cost
(10) Organizational title associated with the Unit Identification Code (UIC) for the Army Supported Activity (the Army Supported Activity is responsible for providing the Contractor with its UIC for the purposes of reporting this information)

(11) Locations where Contractor and sub-contractors perform the work (specified by zip code in the United States and nearest city, country, when in an overseas location, using standardized nomenclature provided on website)
(12) Presence of deployment or contingency contract language and
(13) Number of contractor, and sub-contractor employees deployed in theater this reporting period (by country).

As part of its submission, the Contractor will also provide the estimated total cost (if any) incurred to comply with this reporting requirement."

6. APPLICABLE PUBLICATIONS (CURRENT EDITIONS)

6.1. The Contractor must abide by all applicable regulations, publications, manuals, and local policies and procedures.

Publication Number	Title
DoD 5000 series	Acquisition
Part 117 of Title 32, Code of Federal Regulations	National Industrial Security Program Operating Manual
DoD 8570.01 M	Information Assurance Workforce Improvement Program w CH 2
CJCSM 4300.01	Planning Operational Contract Support
AR 5-1	Management od Army Business Operations
AR 25-2	Army Cybersecurity
AR 25-50	Preparing And Managing Correspondence
AR 11-33	Army Lessons Learned Program
AR 71-9	Warfighting Capabilities Determination
AR 71-32	Force Development and Documentation Consolidated Policies
AR 190-11	Physical Security of Arms, Ammunition, And Explosives
AR 190-13	The Army Physical Security Program
AR 190-51	Security of Unclassified Army Property (Sensitive and Nonsensitive)
AR 380-5	Army Information Security Program
AR 380-49	Industrial Security Program
AR 380-67	Personnel Security Program
AR 381-12	Threat Awareness and Reporting Program
AR 525-13	Antiterrorism
AR 530-1	Operations Security
AR 700-137	Logistics Civil Augmentation Program
AR 715-9	Operational Contract Support Planning and Management
Army Directive 2014-05	Policy and Implementation Procedures for Common Access Card Credentialing and Installation access for Uncleared Contractors
FM 1-02.1	Operational Terms
FM 1-02.2	Military Symbols
FM 3-0	Operations
FM 4-0	Sustainment Operations
ATP 3-39.32	Physical Security
ATP 4-10	Multi-Service Tactics, Techniques, and Procedures for Operational Contract Support
ATP 4-10.1	Logistics Civil Augmentation Program Support to Unified Land Operations
ATP 6-01.1	Techniques for Effective Knowledge Management
TR 25-30	Preparation, Production, and Processing of Armywide Doctrinal and Training Literature (ADTL)
TR 25-36	The TRADOC Doctrine Publication Program
TR 71-12	U.S. Army Training and Doctrine Command Capability Management
TR 71-20	Concept Development, Capabilities Determination, and Capabilities Integration
TR 350-70	Army Learning Policy and Systems
TRADOC PAM 71-20-3	The U.S. Army Training and Doctrine Command Concept Development Guide
TRADOC PAM 350-70 series	Training
TRADOC PAM 525 series	U.S. Army Concepts

Technical Exhibit List:

7.1. Technical Exhibit 1 – Performance Requirements Summary

7.2. Technical Exhibit 2 – Deliverables Schedule

7.3. Technical Exhibit 3 – Estimated Workload Data

TECHNICAL EXHIBIT 1

Performance Requirements Summary

The Contractor service requirements are summarized into performance objectives that relate directly to mission essential items. The performance threshold briefly describes the minimum acceptable levels of service required for each requirement. These thresholds are critical to mission success.

Performance Objective (The Service required—usually a shall statement)	**Standard**	**Performance Threshold** (This is the maximum error rate. It could possibly be "Zero deviation from standard")	**Surveillance Method**
PRS #1. Contractor shall develop and maintain an effective QCP to ensure that services are performed IAW this PWS, and shall develop and implement procedures to identify, prevent and ensure non-recurrence of defective services. PWS para 1.6.1	Deliver to the KO and COR within 30 days of contract award. Thereafter, when changes to the QCP occur, the Contractor shall submit updated, copies of the comprehensive QCP to the KO and COR within 5 working days.	Zero deviation from standard	100% Inspection
PRS # 2. Contractor personnel shall meet the personnel security requirements for access to classified information (no higher than SECRET) while performing under this contract IAW AR 380-67, AR 380-5, and National Industrial Security Program Operating Manual (NISPOM). Contractor personnel must maintain their SECRET eligibility for the duration of the contract. PWS para 1.6.7 and DD From 254.	Contractor personnel will be U.S. citizens and have a valid investigation with final SECRET eligibility (or Interim SECRET eligibility if authorized by the COR in writing, on a case by case basis) in place at the start of this contract. Contractor personnel must maintain their SECRET eligibility for the duration of the contract.	Zero deviations from standard	100% Inspection as verified by the CASCOM G-32
PRS #3. Contractor shall designate, in writing, a primary and alternate contract manager who shall be responsible for the performance of the work. One of the personnel identified as key personnel may be designated as the contract manager and alternate. PWS para 1.6.10.	The contract manager or alternate shall have full authority to act for the Contractor on all contract matters relating to daily operation of this contract. Designation shall be made not later than two business days following contract award and any change in contract manager.	Zero deviations from standard	100% Inspection
PRS # 4. Contract manager shall submit monthly report updating the COR and KO on the status of work under the contract. PWS para 1.6.10	Zero errors, report submitted NLT last business day of the month.	Zero deviations from standard	100% Inspection

PRS # 5. Contractor(s) shall prepare trip reports on all travel within 5 days of completion of travel. Trip reports shall be submitted to the COR. PWS para 1.6.12.	Zero errors, report submitted NLT 5 days after completion of travel.	Zero deviations from standard	100% Inspection
PRS # 6. Contractor personnel shall complete all training required by this contract and local policy. PWS para 1.6.16, 3.5.2 and DD form 254	The Contractor will submit training certificates or a memorandum of record when training certificates were not issued NLT 30 days after start of performance and NLT 1 year following initial training.	Zero deviations from standard	100% Inspection
PRS # 7. Contractor personnel performing work under PWS 5.3 thru 5.9 shall attend weekly IPRs with COR and other USG personnel. **PWS para** 5.2.7.	All Contractor personnel attend scheduled IPRs unless granted an exception by the COR, slides submitted free of errors, 2 business days prior to meeting.	Zero deviations from standard	100% Inspection
PRS # 8. 5.1.2. Contractor shall attend various meeting and provide a memorandum for each meeting to the COR, TPO-OCS Director, and Deputy NLT 2 working days after the meeting identifying the purpose, key participants, topics presented, tasks for TPO-OCS, and any decisions made affecting TPO-OCS. PWS para 5.1.2.	Memorandum format IAW AR 25-20, Zero errors, submitted NLT 2 working days after meeting.	Zero deviations from standard	100% Inspection
PRS # 9. All written products submitted by the Contractor shall be error free and prepared IAW Army and TRADOC regulations and procedures. PWS para 5.2.1 thru 5.2.7	Drafts shall be free of format, spelling, grammatical, punctuation, text, word usage, syntax, graphics, proper use of abbreviations and style errors IAW AR 25-50, TR 25-30, TR 25-36, FM 1-02.1, FM 1-02.2, and TRADOC-mandated Army Publishing Information Program doctrinal template.	No more than 2 errors per page of draft products, zero errors in final drafts	100% Inspection
PRS # 10. Contractor shall review and analyze all OCS-related current tasks, doctrine, and policy using the ADDIE process to create an OCS Total Task List and provide the Government with a memorandum recommending individual and collective OCS tasks by echelon, organization, and staff element NLT 2 months after POP start date. PWS para 5.3.1.	Provide memorandum for record communicating results of their analysis, identifying an OCS potential master task list, and recommending individual and collective OCS tasks by echelon, organization, and staff element to be developed NLT 2 months after POP start date. Memorandum IAW PRS # 9.	Zero deviations from standard	100% Inspection

PRS # 11. Contractor shall conduct a CTSSB to develop a Critical Task List, Learning Requirement List, and a memorandum for TPO-OCS Director. PWS para 5.3.2.	Develop a Critical Task List, Learning Requirement List, and CTSSB minutes in a memorandum IAW TRADOC PAM 350-70-1 and the Training and Education Development TED CRM DOW workbook, NLT 4 months after POP start date, written products IAW PRS # 9. Minutes of meeting due NLT 2 working days after completion of the CTSSB to COR and TPO-OCS leadership.	Zero deviations from standard	100% Inspection
PRS # 12. Contractor shall conduct an individual task analysis to develop and submit a memorandum to the TPO-OCS, Director recommending prioritized revision or development of OCS individual tasks NLT 4 months after the POP start date. PWS para 5.3.3.	Develop memorandum recommending prioritized revision or development of OCS collective tasks NLT 4 months after POP start date, written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 13. Contractor shall revise or develop OCS individual tasks based on ETV and Government prioritization. PWS para 5.3.4.	IAW TRADOC PAM 350-70-1 and the TED CRM DOW workbook, written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 14. Contractor shall conduct a collective task analysis IAW TRADOC PAM 350-70-1 and the TED CRM DOW workbook to develop and submit a memorandum to the TPO-OCS, Director. PWS para 5.3.5.	Develop memorandum recommending prioritized revision or development of OCS collective tasks NLT 4 months after POP start date, written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 15. Contractor shall revise or develop OCS collective tasks with product delivery schedule based on TED CRM DOW workbook ETV and Government prioritization. PWS para 5.3.6.	IAW TRADOC PAM 350-70-1 and the TED CRM DOW workbook, written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 16. Using the ADDIE process, Contractor shall recommend revision or development of applicable training products as described in TRADOC PAM 350-70-1 and the TED CRM DOW workbook, to include Distance Learning options. PWS para 5.3.7.	Develop memorandum recommending prioritized revision or development of training products NLT 5 months after the POP start date, written products IAW PRS # 9.	Zero deviations from standard	100% Inspection

PRS # 17. Contractor shall develop applicable OCS training and education products to include Solider Training Plan and Officer Foundational Standards listed in the TED CRM DOW workbook and prioritized by the Government. Product delivery schedule based on TED CRM DOW workbook ETV and Government prioritization. PWS para 5.3.8.	Develop training products within TED CRM DOW Workbook ETVs based on government prioritization. Written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 18. The Contractor shall review, maintain, and update OCS-related training and education products IAW timelines and the ETV provided in the TED CRM DOW workbook and Government prioritization. PWS para 5.3.9.	Complete review, maintenance, or update IAW timelines and the ETV provided in the TED CRM DOW workbook and Government prioritization. Written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 19. Contractor shall assist ALU OCS Course Instructors with the revision of the OCS Course (9E-SI3C/ASI3C/950-ASI3C) Program of Instruction (POI) and lessons. PWS para 5.3.10.	All products will be completed and approved by the Government prior to the FY 24 academic school year. Written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 20. Contractor shall collect and provide OCS training development workload data to the COR, to include historical achievements and projections for future workload requirements using the TED CRM DOW workbook. PWS para 5.3.11.	Workload data shall be submitted prior to the timelines established in the Training and Education Development (TED) Workload Management (WM) Process Guide found in the Training and Education Developer Toolbox (TED-T) at https://cacmdc.army.mil/armyu/TEDT/Pages/Toolbox.aspx	Zero deviations from standard	100% Inspection
PRS # 21. Contractor shall review scenarios, coordinate with the Sustainment Battle Lab (SBL) and other Centers of Excellence (COE) to research, draft and integrate OCS capabilities and limitations within emerging concepts, seminars, wargames, and other experimentation efforts. PWS para 5.4.1.	Integration efforts shall comply with procedures established in TR 71-20. Written products IAW PRS # 9.	Zero deviations from standard	100% Inspection

PRS # 22. Contractor shall review and draft input on emerging concepts in coordination with the SBL and other relevant agencies. Contractor's responses shall be reviewed by the COR IAW deadlines established by the appropriate external agency. PWS para 5.4.2.	Zero errors. Submitted for review by COR IAW deadlines established by the appropriate external agency. Written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 23. Contractor shall provide meeting summary of all engagements to the COR, TPO-OCS Director, and Deputy. PWS para 5.4.3.	Written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 24. The Contractor shall develop exercise injects and experimentation essential elements of analysis (EAA). PWS para 5.4.4	Zero errors, submitted to the COR, TPO-OCS Director, and Deputy for approval prior to incorporation into any exercise or experiment. Written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 25. Contractor shall develop and maintain an OCS DOTMLPF-P assessment using the fielded force as the baseline and identifying/ addressing OCS gaps, limitations, and shortfalls pertaining to the current fielded force, the Army Division Redesign, ARMY 2030, and Army 2035 and Beyond. PWS para 5.4.5.	Initial assessment NLT 4 months from POP start date, updated NLT 6 months thereafter, written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 26. Contractor shall develop OCS-related white papers and concepts of operations (CONOPS) to support Army Division Redesign, Army 2030, and Army 2035 and Beyond IAW TR 71-20. PWS para 5.4.6.	IAW TR 71-20, and written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 27. 5.5.1. The Contractor shall establish and maintain coordination with CASCOM Force Development Directorate (FDD) and FDDs at other TRADOC Centers of Excellence (COEs) to identify and synchronize force design requirements and shall establish and maintain coordination with personnel proponent offices at CASCOM and other TRADOC COEs to identify and synchronize Military Occupational Classification System (MOCS) requirements. PWS para 5.5.1.	Maintain and publish annually a POC List for Force Design and Personnel action officers at appropriate COEs.	Zero deviations from standard	100% Inspection

PRS # 28. Contractor shall participate in force design and personnel coordination meetings in person and by telephone and VTC preparing and submitting meeting summaries to advise and make recommendations via memorandums on Force Development and personnel issues to the COR, TPO Director, and Deputy. PWS para 5.5.2.	Written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 29. Contractor shall research, analyze, and prepare Force Design Update packages. PWS para 5.5.3.	IAW AR 71-32 and meet timelines established by the relevant FDD. Written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 30. 5.5.4. The Contractor shall research, analyze, and recommend OCS personnel solutions and prepare input to MOCS updates upon approval by the TPO-OCS Director or Deputy. PWS para 5.5.4.	Meet timelines established by the appropriate external agencies. Written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 31. Contractor shall research, analyze, and report Total Army 3C ASI required, authorized, and filled positions, and trained personnel filling 3C ASI positions by component, command, and unit based on approved EDate as of current date, and approved EDates- thru end of FY. PWS para 5.5.5.	Zero errors, on a quarterly basis NLT the 15th of the 3rd month of the quarter. Written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 32. Contractor shall analyze existing TPO-OCS SharePoint sites to suggest possible enhancements/ upgrades to include an ability to collaborate with external organizations, providing initial recommendations by memorandum to the COR and TPO leadership NLT 2 months after POP start date, and thereafter on a quarterly basis. PWS para 5.6.1.	Zero errors, submitted NLT 2 month after POP start date, and thereafter on a quarterly basis, written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 33. Contractor shall create, edit, and delete pages, lists, folders, libraries, documents, and calendars on the TPO-OCS and OCS Resource Portal sites based on approved recommendations. PWS para 5.6.2.	Zero errors, changes completed and submitted to the COR and TPO-OCS leadership for final approval prior to publishing the changes based on a schedule agreed to between the Contractor and USG, written products IAW PRS # 9.	Zero deviations from standard	100% Inspection

PRS # 34. Contractor shall coordinate with TPO-OCS workforce to develop SharePoint solutions that link training products with doctrinal references for use by operational forces conducting Home Station Unit and self-development training. PWS para 5.6.3.	Zero errors, changes completed and submitted to the COR and TPO-OCS leadership for final approval prior to publishing the changes based on a schedule agreed to between the Contractor and USG, written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 35. 5.6.4. The Contractor shall design, develop, and implement a collaboration solution that allows operational forces to collaborate with each other and TPO-OCS on OCS related topics. Solution fully operational NLT start of FY24. PWS para 5.6.4.	Zero errors, solution fully operational NLT start of FY23, written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 36. Contractor shall develop tactics, techniques, procedures (TTPs) /business rules to enable the TPO-OCS workforce to populate and edit site and page content IOT ensure content remains accurate and current. PWS para 5.6.5.	Zero errors, incorporated into solution development timelines and consolidated into site Standard Operating Procedures/Business Rules annually NLT the last month of the FY, written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 37. The Contractor shall coordinate and conduct interviews with key leaders and staff members regarding observations, lessons (OILs) and best practices during operations, exercises, and other activities involving OCS. PWS para 5.7.1.	Zero errors, recorded in the Joint Lessons Learned Information System (JLLIS) NLT 1 week after conducting interview, written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 38. Contractor shall in coordination with CASCOM G3 prepare, conduct, and analyze targeted OCS surveys, and provide results to the COR and TPO-OCS Leadership NLT 2 weeks after close of the survey. PWS para 5.7.2.	Zero errors, provide results and analysis in memorandum format to the COR and TPO-OCS Leadership NLT 2 weeks after close of the survey, written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 39. Contractor shall review and analyze OILs to identify trends and recommend in memorandum format potential DOTMLPF-P solutions to the COR and TPO Leadership for implementation on a quarterly basis. PWS para 5.7.3.	Zero errors, NLT 3rd workday of the next quarter, written products IAW PRS # 9.	Zero deviations from standard	100% Inspection

PRS # 40. Contractor shall review, analyze, and identify lessons, trends, and best practices with OCS significant to the Joint community, and once approved by the COR and TPO leadership create a specific JLLIS cabinet with approved items. PWS para 5.7.4.	Zero errors, provide results in memorandum format to the COR and TPO-OCS Leadership for approval, submit approved items to the Joint OCS Lessons Learned Manager via linked JLLIS cabinet annually based on JS J4 tasking, written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 41. Contractor shall coordinate with subject matter experts within Army, joint and DoD agencies and solicit feedback from deployed units using presentations, surveys, interviews, and observations to identify existing materiel requirements, capability gaps, and potential solutions. PWS para 5.8.1.	Zero errors, results documented in memorandum format and submitted to the COR and TPO Leadership for concurrence and approval within 5 working days, written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 42. Contractor shall coordinate, as requested by the COR, recommended solutions with Government Program Managers and appropriate agencies providing a meeting summary of all engagements to enable successful testing, fielding, and training on materiel solutions that impact Army OCS capabilities. PWS para 5.8.2.	Zero errors, provide meeting summaries to the COR and TPO Leadership NLT 2 working days after the meetings, written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 43. Contractor shall schedule, coordinate, and participate in conferences, meetings, and in-progress reviews to ensure effective synchronization of testing, fielding, and training efforts for materiel solutions and shall prepare and submit presentations NLT 2 day prior to execution and written summaries NLT 2 working days after all meetings, conferences, and in-progress reviews to the COR. PWS para 5.8.3.	Zero errors, prepare and submit presentations NLT 2 day prior to execution and written summaries NLT 2 working days after all meetings, conferences and in-progress reviews to the COR, written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 44. Contractor shall Review for Assessment ATP 4-10 and ATP 4-10.1 on an 18-month cycle from the date of the publication, and provide TPO-OCS Director with a memorandum recommending no change, minor change, or major revision of the current document. PWS para 5.9.1.	IAW TRADOC REG 25-30, memorandum due NLT 5 working days after Review completion, written products IAW PRS # 9.	Zero deviations from standard	100% Inspection

PRS # 45. Contractor shall develop change document or major revision of the publication based on proponent decision from Review for Assessment. Product deliverables may include Program Directive (PD), Initial Draft (ID), Final Draft (FD), and the Final Signature Draft. PWS para 5.9.2.	Zero errors, products delivered IAW timelines identified in TRADOC REG 25-30, written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 46. Contractor shall adjudicate comments from the PD, ID, and FD staffing and provide the adjudicated comment matrix (CM) to the COR for approval. Use adjudicated comments to make revisions prior to submission of the next draft IAW TRADOC REG 25-30. PWS para 5.9.3.	CRM to COR NLT 2 working days after adjudication, revisions made prior to next draft IAW TRADOC REG 25-30 timelines, written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 47. Contractor shall Review for Comment approximately 8 policy and doctrine documents per month for inclusion and correctness of OCS content. The Contractor shall provide a Change Resolution Matrix of recommended comments to the COR for Government review and submission NLT 5 Working days prior to suspense. PWS para 5.9.4.	Zero errors. CRM due to COR and TPO leadership for review/approval NLT 5 working days prior to suspense, written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 48. Contractor shall analyze the need and recommend a prioritized list of topics in memorandum format for OCS Handbooks to augment doctrinal manuals and training products. PWS para 5.9.5.	NLT 3 months from POP start date, then annually thereafter, in memorandum format, written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 49. Contractor shall develop OCS Handbooks based on Government approved prioritization and timelines coordinated and agreed to between the Government and Contractor. PWS data 5.9.6.	Zero errors, written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 50. 5.9.7. The Contractor shall provide a monthly doctrinal running estimate to the COR for review and submission by the Government. PWS para 5.9.7.	Zero errors, NLT 3 days prior to suspense established by CASCOM, G-3 Doctrine Branch, written products IAW PRS # 9.	Zero deviations from standard	100% Inspection

PRS # 51. 5.9.8. The Contractor shall gather, prepare, and submit annual doctrinal workload data, to include historical achievements and projections for future workload requirements PWS para 5.9.8.	IAW the schedule provided in TR 25-30 to the COR for review and submission by the government to the CASCOM Doctrine Branch, written products IAW PRS # 9.	Zero deviations from standard	100% Inspection
PRS # 52. Contractor shall report ALL Contractor labor hours (including Sub-Contractor labor hours) required for performance of services provided under this contract for the United States Army via the following web address: http://www.beta.sam.gov. Reporting inputs will be for the labor executed during the POP during each Government FY, which runs from October 1 through September 30. While inputs may be reported any time during the FY. PWS para 5.10.	Zero errors, all data shall be reported no later than October of each calendar year	Zero deviations from standard	100% Inspection

TECHNICAL EXHIBIT 2

DELIVERABLES SCHEDULE

Deliverable	Frequency	# of Copies	Medium/Format	Submit To
Quality Control Plan PWS 1.6.1	Within 30 days of contract award, thereafter within 5 working days of any update.	1 Digital	E-Mail	KO and COR
In Process Review Slides PWS 5.2.7.	Weekly	1 Digital	MS PowerPoint / Share Drive/ SharePoint/ MS Teams / E-mail	COR, Director & Deputy, TPO-OCS
Work Status Report PWS 1.6.10	Monthly	1 Digital	MS PowerPoint / Share Drive/ SharePoint/ MS Teams / E-mail	COR, Director & Deputy, TPO-OCS
Meeting Summary PWS 5.1.2	2 workdays after all meetings with personnel external to TPO-OCS	1 Digital	MS PowerPoint / Share Drive/ SharePoint/ MS Teams / E-mail	COR, Deputy, TPO-OCS
Trip Report PWS 1.6.12	5 workdays after all official travel conducted	1 Digital	MS PowerPoint / Share Drive/ SharePoint/ MS Teams / E-mail	COR, Deputy, TPO-OCS
Training Certificate PWS 5.1.3	Upon Completion of Required Training	1 Digital	.pdf / Share Drive/ SharePoint/ MS Teams / E-mail	COR
Memorandum PWS 5.3.2, 5.3.3, 5.5.2, 5.6.1, 5.8.1, 5.9.1, 5.9.5	After conducting analysis or research	1 Digital	MS Word / Share Drive/SharePoint/ MS Teams / E-mail	Director & Deputy, TPO-OCS
Total Task Inventory PWS 5.3.1	Annually	1 Digital	MS EXCEL / Share Drive/SharePoint/ MS Teams / E-mail	COR, Deputy, TPO-OCS
Individual Critical Task List PWS 5.3.2	Annually	1 Digital	Training Development Capability (TDC	COR, Deputy, TPO-OCS
Critical Task Selection Board Minutes PWS 5.3.2	Per Critical Task Selection Board	1 Digital	MS Word / Share Drive/SharePoint/ MS Teams / E-mail	COR, Deputy, TPO-OCS
Individual Task PWS 5.3.3	4-6 Annually	1 Digital	TDC	COR, Deputy, TPO-OCS
Collective Task PWS 5.3.6	2 -4 Annually	1 Digital	TDC	COR, Deputy, TPO-OCS
Lesson Plan PWS 5.3.10	2-3 Annually	1 Digital	TDC	COR, Deputy, TPO-OCS
Program of Instruction PWS 5.3.10	1 every 3 years beginning in FY23	1 Digital	TDC	COR, Deputy, TPO-OCS

Deliverable	Frequency	# of Copies	Medium/Format	Submit To
Soldier Training Plan PWS 5.3.6	Once every 18 Months	1 Digital	MS Word / Share Drive/SharePoint/ MS Teams. E-mail	COR, Deputy, TPO-OCS
Officer Foundational Standard PWS 5.3.6	Annually	1 Digital	MS Word / Share Drive/SharePoint/ MS Teams. E-mail	COR, Deputy, TPO-OCS
Function Combined Arms Training Strategy PWS 5.3.8.	Annually	1 Digital	TDC	COR, Deputy, TPO-OCS
Individual Training Support Package PWS 5.3.8.	2-4 Annually	1 Digital	TDC	COR, Deputy, TPO-OCS
Warfighter Training Support Package PWS 5.3.8.	2-4 Annually	1 Digital	TDC	COR, Deputy, TPO-OCS
TED Workload Management Tool (TED-WMT) PWS 5.3.11.	Annually	1 Digital	MS EXCEL / Share Drive/SharePoint/ MS Teams. E-mail	COR, Deputy, TPO-OCS
OCS DOTMLPF Assessment PWS 5.4.5	Annually	1 Digital	MS PowerPoint / Share Drive/ SharePoint/ MS Teams. E-mail	Director & Deputy, TPO-OCS
OCS White Paper PWS 5.4.6		1 digital	MS Word / Share Drive/SharePoint/ MS Teams. E-mail	Director & Deputy, TPO-OCS
OCS Concepts of Operations (CONOPS) PWS 5.4.6	Annually	1 Digital	MS Word / Share Drive/SharePoint/ MS Teams. E-mail	Director & Deputy, TPO-OCS
ASI 3C Battlefield Laydown PWS 5.5.5	Annually	1 Digital	MS PowerPoint / Share Drive/ SharePoint/ MS Teams. E-mail	Director & Deputy, TPO-OCS
FMSWEB ASI 3C Position Report PWS 5.5.5.	Quarterly	1 Digital	MS EXCEL / Share Drive/SharePoint/ MS Teams. E-mail	Director & Deputy, TPO-OCS
ASI 3C By Command Position, Filled, Trained Report PWS 5.5.5.	Quarterly	1 Digital	MS EXCEL / Share Drive/SharePoint/ MS Teams. E-mail	Director & Deputy, TPO-OCS
SharePoint Sites PWS 5.6.1	Monthly	1 Digital	SharePoint	Deputy, TPO-OCS
SharePoint Pages PWS 5.6.2	Monthly	1 Digital	SharePoint	Deputy, TPO-OCS
SharePoint Standard Operating Procedures/Business Rules PWS 5.6.5.	Annually	1 Digital	MS Word / Share Drive/SharePoint/ MS Teams. E-mail	Director & Deputy, TPO-OCS

Deliverable	Frequency	# of Copies	Medium/Format	Submit To
Comment Resolution Matrix PWS 5.9.3. & 5.9.4.	6 per month	1 Digital	MS EXCEL/Word / Share Drive/ SharePoint/ MS Teams. E-mail	Director & Deputy, TPO-OCS / Doctrine/Policy Proponent
Doctrine Manual – Program Directive PWS 5.9.2	1 per 18 months	1 Digital	MS Word / Share Drive/SharePoint/ MS Teams. E-mail	Director & Deputy, TPO-OCS / CASCOM G-3, Doctrine Division
Doctrine Manual – Initial Draft PWS 5.9.2	1 per 18 months	1 Digital	MS Word / Share Drive/SharePoint/ MS Teams. E-mail	Director & Deputy, TPO-OCS / CASCOM G-3, Doctrine Division
Doctrine Manual – Final Draft PWS 5.9.2	1 per 18 months	1 Digital		Director & Deputy, TPO-OCS / CASCOM G-3, Doctrine Division
Doctrine Manual – Final Signature Draft PWS 5.9.2	1 per 18 months	1 Digital		Director & Deputy, TPO-OCS / CASCOM G-3, Doctrine Division
Handbook PWS 5.9.6t	2-3 Annually	1 Digital	MS Word/ .pdf / Share Drive/SharePoint/ MS Teams. E-mail	Director & Deputy, TPO-OCS
Doctrinal Running Estimate PWS 5.9.7	Monthly	1 Digital	MS PowerPoint / Share Drive/ SharePoint/ MS Teams. E-mail	Director & Deputy, TPO-OCS / CASCOM G-3, Doctrine Division
Doctrine Workload Report PWS 5.9.8	3 times Annually	1 Digital	MS PowerPoint / Share Drive/ SharePoint/ MS Teams. E-mail	Director & Deputy, TPO-OCS / CASCOM G-3, Doctrine Division

TECHNICAL EXHIBIT 3

ESTIMATED WORKLOAD DATA

Historical data is provided as a workload estimate only. This estimate is not intended to be binding on either party or to be the only possible solution to the requirements. At time of award, the successful Contractor's accepted staffing plan shall be incorporated into the resultant contract. Offeror's are reminded to review FAR Clause 52.222-17, Nondisplacement of Qualified Workers (Jan 2013), to ensure compliance.

Annual Workload Projected	
PWS Section	**Average of Annual Hours**
5.3 – Training Development III (Training Development) & OPTIONAL Training Developer II (Training Development)	3,693
5.4. – OPTIONAL - Functional Analyst III (OCS Concept/Capability Development)	1,882
5.5 – OPTIONAL - Management Analyst II (Force Design and Personnel)	1,882
5.6 – OPTIONAL - SharePoint Developer (Knowledge Management)	1,846
5.7 – OPTIONAL - Functional Analyst (Lessons Learned)	1,871
5.8 – OPTIONAL – Program Analyst II (Material Development)	1,895
5.9 – OPTIONAL –Writer/Editor (Doctrine Development)	1,810
Total Average of Annual Hours	**14,879**

Section E - Inspection and Acceptance

DELIVERY INFORMATION

CLIN	DELIVERY DATE	QUANTITY	SHIP TO ADDRESS	DODAAC / CAGE

Section G - Contract Administration Data

CLAUSES INCORPORATED BY REFERENCE

252.204-7006 Billing Instructions OCT 2005

CLAUSES INCORPORATED BY FULL TEXT

252.232-7003 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS AND RECEIVING REPORTS (DEC 2018)

(a) Definitions. As used in this clause--

Contract financing payment means an authorized Government disbursement of monies to a contractor prior to acceptance of supplies or services by the Government.

(1) Contract financing payments include--

(i) Advance payments;

(ii) Performance-based payments;

(iii) Commercial advance and interim payments;

(iv) Progress payments based on cost under the clause at Federal Acquisition Regulation (FAR) 52.232-16, Progress Payments;

(v) Progress payments based on a percentage or stage of completion (see FAR 32.102(e)), except those made under the clause at FAR 52.232-5, Payments Under Fixed-Price Construction Contracts, or the clause at FAR 52.232-10, Payments Under Fixed-Price Architect-Engineer Contracts; and

(vi) Interim payments under a cost reimbursement contract, except for a cost reimbursement contract for services when Alternate I of the clause at FAR 52.232-25, Prompt Payment, is used.

(2) Contract financing payments do not include--

(i) Invoice payments;

(ii) Payments for partial deliveries; or

(iii) Lease and rental payments.

Electronic form means any automated system that transmits information electronically from the initiating system to affected systems.

Invoice payment means a Government disbursement of monies to a contractor under a contract or other authorization for supplies or services accepted by the Government.

(1) Invoice payments include--

(i) Payments for partial deliveries that have been accepted by the Government;

(ii) Final cost or fee payments where amounts owed have been settled between the Government and the contractor;

(iii) For purposes of subpart 32.9 only, all payments made under the clause at 52.232-5, Payments Under Fixed-Price Construction Contracts, and the clause at 52.232-10, Payments Under Fixed-Price Architect-Engineer Contracts; and

(iv) Interim payments under a cost-reimbursement contract for services when Alternate I of the clause at 52.232-25, Prompt Payment, is used.

(2) Invoice payments do not include contract financing payments.

Payment request means any request for contract financing payment or invoice payment submitted by the Contractor under this contract or task or delivery order.

Receiving report means the data prepared in the manner and to the extent required by Appendix F, Material Inspection and Receiving Report, of the Defense Federal Acquisition Regulation Supplement.

(b) Except as provided in paragraph (d) of this clause, the Contractor shall submit payment requests and receiving reports in electronic form using Wide Area WorkFlow (WAWF). The Contractor shall prepare and furnish to the Government a receiving report at the time of each delivery of supplies or services under this contract or task or delivery order.

(c) Submit payment requests and receiving reports to WAWF in one of the following electronic formats:

(1) Electronic Data Interchange.

(2) Secure File Transfer Protocol.

(3) Direct input through the WAWF website.

(d) The Contractor may submit a payment request and receiving report using methods other than WAWF only when--

(1) The Contractor has requested permission in writing to do so, and the Contracting Officer has provided instructions for a temporary alternative method of submission of payment requests and receiving reports in the contract administration data section of this contract or task or delivery order;

(2) DoD makes payment for commercial transportation services provided under a Government rate tender or a contract for transportation services using a DoD-approved electronic third party payment system or other exempted vendor payment/invoicing system (e.g., PowerTrack, Transportation Financial Management System, and Cargo and Billing System);

(3) DoD makes payment on a contract or task or delivery order for rendered health care services using the TRICARE Encounter Data System; or

(4) The Governmentwide commercial purchase card is used as the method of payment, in which case submission of only the receiving report in WAWF is required.

(e) Information regarding WAWF is available at https://wawf.eb.mil/.

(f) In addition to the requirements of this clause, the Contractor shall meet the requirements of the appropriate payment clauses in this contract when submitting payment requests.

(End of clause)

252.232-7006 WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (DEC 2018)

(a) Definitions. As used in this clause—

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall—

(1) Have a designated electronic business point of contact in the System for Award Management at https://www.sam.gov; and

(2) Be registered to use WAWF at https://wawf.eb.mil/ following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at https://wawf.eb.mil/.

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items—

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

_____

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

_____

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial item financing, submit a commercial item financing request.

(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	*Data to be entered in WAWF*
Pay Official DoDAAC	____
Issue By DoDAAC	____
Admin DoDAAC**	____
Inspect By DoDAAC	____
Ship To Code	____
Ship From Code	____
Mark For Code	____
Service Approver (DoDAAC)	____
Service Acceptor (DoDAAC)	____
Accept at Other DoDAAC	____
LPO DoDAAC	____
DCAA Auditor DoDAAC	____
Other DoDAAC(s)	____

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

_____

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Section I - Contract Clauses

CLAUSES INCORPORATED BY REFERENCE

52.202-1	Definitions	JUN 2020
52.203-3	Gratuities	APR 1984
52.203-5	Covenant Against Contingent Fees	MAY 2014
52.203-7	Anti-Kickback Procedures	JUN 2020
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity	MAY 2014
52.203-10	Price Or Fee Adjustment For Illegal Or Improper Activity	MAY 2014
52.203-12	Limitation On Payments To Influence Certain Federal Transactions	JUN 2020
52.203-15	Whistleblower Protections Under the American Recovery and Reinvestment Act of 2009	JUN 2010
52.203-17	Contractor Employee Whistleblower Rights and Requirement To Inform Employees of Whistleblower Rights	JUN 2020
52.203-18	Prohibition on Contracting With Entities That Require Certain Internal Confidentiality Agreements or Statements--Representation	JAN 2017
52.204-7	System for Award Management	OCT 2018
52.204-13	System for Award Management Maintenance	OCT 2018
52.204-16	Commercial and Government Entity Code Reporting	AUG 2020
52.204-17	Ownership or Control of Offeror	AUG 2020
52.204-18	Commercial and Government Entity Code Maintenance	AUG 2020
52.204-19	Incorporation by Reference of Representations and Certifications.	DEC 2014
52.204-20	Predecessor of Offeror	AUG 2020
52.204-21	Basic Safeguarding of Covered Contractor Information Systems	NOV 2021
52.204-22	Alternative Line Item Proposal	JAN 2017
52.204-24	Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment	NOV 2021
52.204-26	Covered Telecommunications Equipment or Services--Representation.	OCT 2020
52.209-2	Prohibition on Contracting with Inverted Domestic Corporations--Representation	NOV 2015
52.212-3	Offeror Representations and Certifications--Commercial Products and Commercial Services	DEC 2022
52.212-4	Contract Terms and Conditions--Commercial Products and Commercial Services	DEC 2022
52.212-4	Contract Terms and Conditions--Commercial Products and Commercial Services	DEC 2022
52.212-5	Contract Terms and Conditions Required to Implement Statutes or Executive Orders--Commercial Products and Commercial Services	DEC 2022
52.216-24	Limitation Of Government Liability	APR 1984
52.216-25	Contract Definitization	OCT 2010
52.223-13	Acquisition of EPEAT - Registered Imaging Equipment (Jun 2014)	JUN 2014
52.223-22	Public Disclosure of Greenhouse Gas Emissions and Reduction Goals -- Representation.	DEC 2016
52.224-3	Privacy Training	JAN 2017

52.225-20	Prohibition on Conducting Restricted Business Operations in Sudan--Certification	AUG 2009
52.225-25	Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-- Representation and Certifications.	JUN 2020
52.227-14	Rights in Data--General	MAY 2014
52.228-5	Insurance - Work On A Government Installation	JAN 1997
52.229-4	Federal, State, And Local Taxes (State and Local Adjustments)	FEB 2013
52.232-1	Payments	APR 1984
52.232-33	Payment by Electronic Funds Transfer--System for Award Management	OCT 2018
52.232-39	Unenforceability of Unauthorized Obligations	JUN 2013
52.232-40	Providing Accelerated Payments to Small Business Subcontractors	NOV 2021
52.252-1	Solicitation Provisions Incorporated By Reference	FEB 1998
252.201-7000	Contracting Officer's Representative	DEC 1991
252.203-7000	Requirements Relating to Compensation of Former DoD Officials	SEP 2011
252.203-7001	Prohibition On Persons Convicted of Fraud or Other Defense-Contract-Related Felonies	DEC 2022
252.203-7002	Requirement to Inform Employees of Whistleblower Rights	DEC 2022
252.203-7003	Agency Office of the Inspector General	AUG 2019
252.203-7005	Representation Relating to Compensation of Former DoD Officials	SEP 2022
252.204-7000	Disclosure Of Information	OCT 2016
252.204-7003	Control Of Government Personnel Work Product	APR 1992
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting	DEC 2019
252.227-7015	Technical Data--Commercial Items	DEC 2022
252.232-7010	Levies on Contract Payments	DEC 2006
252.237-7000	Notice Of Special Standards Of Responsibility	DEC 1991
252.243-7001	Pricing Of Contract Modifications	DEC 1991
252.243-7002	Requests for Equitable Adjustment	DEC 2022

CLAUSES INCORPORATED BY FULL TEXT

52.204-9 PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL (JAN 2011)

(a) The Contractor shall comply with agency personal identity verification procedures identified in the contract that implement Homeland Security Presidential Directive-12 (HSPD-12), Office of Management and Budget (OMB) guidance M-05-24, and Federal Information Processing Standards Publication (FIPS PUB) Number 201.

(b) The Contractor shall account for all forms of Government-provided identification issued to the Contractor employees in connection with performance under this contract. The Contractor shall return such identification to the issuing agency at the earliest of any of the following, unless otherwise determined by the Government:

(1) When no longer needed for contract performance.

(2) Upon completion of the Contractor employee's employment.

(3) Upon contract completion or termination.

(c) The Contracting Officer may delay final payment under a contract if the Contractor fails to comply with these requirements.

(d) The Contractor shall insert the substance of this clause, including this paragraph (d), in all subcontracts when the subcontractor`s employees are required to have routine physical access to a Federally-controlled facility and/or routine access to a Federally-controlled information system. It shall be the responsibility of the prime Contractor to return such identification to the issuing agency in accordance with the terms set forth in paragraph (b) of this section, unless otherwise approved in writing by the Contracting Officer.

(End of Clause)

52.212-3 OFFEROR REPRESENTATIONS AND CERTIFICATIONS--COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (DEC 2022)

The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through https://www.sam.gov. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (v) of this provision.

(a) Definitions. As used in this provision --

"Covered telecommunications equipment or services" has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

"Economically disadvantaged women-owned small business (EDWOSB) concern" means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

"Forced or indentured child labor" means all work or service-

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

"Highest-level owner" means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

"Immediate owner" means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: Ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

"Inverted domestic corporation" means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

"Manufactured end product" means any end product in product and service codes (PSCs) 1000-9999, except--

(1) PSC 5510, Lumber and Related Basic Wood Materials;

(2) Product or Service Group (PSG) 87, Agricultural Supplies;

(3) PSG 88, Live Animals;

(4) PSG 89, Subsistence;

(5) PSC 9410, Crude Grades of Plant Materials;

(6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;

(7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;

(8) PSC 9610, Ores;

(9) PSC 9620, Minerals, Natural and Synthetic; and

(10) PSC 9630, Additive Metal Materials.

"Place of manufacture" means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

"Predecessor" means an entity that is replaced by a successor and includes any predecessors of the predecessor.

"Reasonable inquiry" has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

"Restricted business operations" means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate--

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended.

"Sensitive technology"--

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically--

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

"Service-disabled veteran-owned small business concern"--

(1) Means a small business concern--

(i) Not less than 51 percent of which is owned by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran.

(2) Service-disabled veteran means a veteran, as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16).

"Small business concern"--

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

"Small disadvantaged business concern, consistent with 13 CFR 124.1002", means a small business concern under the size standard applicable to the acquisition, that--

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by--

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding $750,000 after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

"Subsidiary" means an entity in which more than 50 percent of the entity is owned--

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation.

"Successor" means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

"Veteran-owned small business concern" means a small business concern--

(1) Not less than 51 percent of which is owned by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

"Women-owned business concern" means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women.

"Women-owned small business concern" means a small business concern--

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

"Women-owned small business (WOSB) concern eligible under the WOSB Program" (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b) (1) Annual Representations and Certifications. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through http://www.sam.gov. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications--Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs ___

[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii). Check all that apply.

(1) Small business concern. The offeror represents as part of its offer that--

(i) It [___] is, [___] is not a small business concern; or

(ii) It [___] is, [___] is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ___]

(2) Veteran-owned small business concern. (Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.) The offeror represents as part of its offer that it [___] is, [___] is not a veteran-owned small business concern.

(3) Service-disabled veteran-owned small business concern. [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.] The offeror represents as part of its offer that--

(i) It [___] is, [___] is not a service-disabled veteran-owned small business concern; or

(ii) It [___] is, [___] is not a joint venture that complies with the requirements of 13 CFR 125.18(b)(1) and (2). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ___ .] Each service-disabled veteran-owned small business concern participating in the joint venture shall provide representation of its service-disabled veteran-owned small business concern status.

(4) Small disadvantaged business concern. (Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.) The offeror represents that it [___] is, [___] is not a small disadvantaged business concern as defined in 13 CFR 124.1002.

(5) Women-owned small business concern. (Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.) The offeror represents that it [___] is, [___] is not a women-owned small business concern.

(6) WOSB joint venture eligible under the WOSB Program. The offeror represents that it [___] is, [___] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ___ .

(7) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The offeror represents that it [___] is, [___] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ___ .]

(8) Women-owned business concern (other than small business concern). (Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.) The offeror represents that it (___) is, a women-owned business concern.

(9) Tie bid priority for labor surplus area concerns. If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price:

___

(10) HUBZone small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that--

(i) It [___] is, [___] is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It [___] is, [___] is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ___ .] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) Certifications and representations required to implement provisions of Executive Order 11246--

(1) Previous Contracts and Compliance. The offeror represents that--

(i) It (___) has, (___) has not, participated in a previous contract or subcontract subject to the Equal Opportunity clause of this solicitation, and

(ii) It (___) has, (___) has not, filed all required compliance reports.

(2) Affirmative Action Compliance. The offeror represents that--

(i) It (___) has developed and has on file, (___) has not developed and does not have on file, at each establishment, affirmative action programs required by rules and regulations of the Secretary of Labor (41 CFR Subparts 60-1 and 60-2), or

(ii) It (___) has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the Secretary of Labor.

(e) Certification Regarding Payments to Influence Federal Transactions (31 U.S.C. 1352). (Applies only if the contract is expected to exceed $150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) Buy American Certificate. (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American --Supplies, is included in this solicitation.)

(1) (i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

Line Item No.	Country of origin	Exceeds 55% domestic content (yes/no)
___	___	___
___	___	___
___	___	___

[List as necessary]

(3) Domestic end products containing a critical component:

Line Item No.
___
___
___

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(g)(1) Buy American--Free Trade Agreements--Israeli Trade Act Certificate. (Applies only if the clause at FAR 52.225-3, Buy American--Free Trade Agreements--Israeli Trade Act, is included in this solicitation.)

(i) (A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms "Bahrainian, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American--Free Trade Agreements--Israeli Trade Act."

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahrainian, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American--Free Trade Agreements--Israeli Trade Act."

Free Trade Agreement Country End Products (Other than Bahrainian, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line Item No.	Country of origin
___	___
___	___
___	___

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American--Free Trade Agreements--Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Other Foreign End Products:

Line Item No.	Country of origin	Exceeds 55% domestic content (yes/no)
___	___	___
___	___	___
___	___	___

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

Line Item No.
___
___
___

[List as necessary]

(v) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(2) Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II. If Alternate II to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:
(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Israeli End Products:

Line Item No.

___
___
___

[List as necessary]

(3) Buy American--Free Trade Agreements--Israeli Trade Act Certificate, Alternate III. If Alternate III to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:
(g)(1)(ii) The offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahrainian, Korean, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American --Free Trade Agreements--Israeli Trade Act":

Free Trade Agreement Country End Products (Other than Bahrainian, Korean, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line Item No.	Country of origin
___	___
___	___
___	___

[List as necessary]

(4) Trade Agreements Certificate. (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(5)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements".

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line Item No.	Country of origin
___	___
___	___
___	___

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR Part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated

country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) Certification Regarding Responsibility Matters (Executive Order 12689). (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals--

(1) [____] Are, [____] are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) [____] Have, [____] have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) [____] Are, [____] are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) [____] Have, [____] have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) Examples.

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126). [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at 22.1503(b).]

(1) Listed end products.

Listed end product	Listed countries of origin
___	___
___	___
___	___

(2) Certification. [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]

[___] (i) The offeror will not supply any end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.

[___] (ii) The offeror may supply an end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.

(j) Place of manufacture. (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly—

(1) (___) In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) (___) Outside the United States.

(k) Certificates regarding exemptions from the application of the Service Contract Labor Standards. (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.)

[The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

[___] (1) Maintenance, calibration, or repair of certain equipment as described in FAR 22.1003-4(c)(1). The offeror (___) does (___) does not certify that—

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

[___] (2) Certain services as described in FAR 22.1003-4(d)(1). The offeror (___) does (___) does not certify that—

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies—

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) Taxpayer Identification Number (TIN) (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) Taxpayer Identification Number (TIN).

(___) TIN: ----------.

(___) TIN has been applied for.

(___) TIN is not required because:

(___) Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

(___) Offeror is an agency or instrumentality of a foreign government;

(___) Offeror is an agency or instrumentality of the Federal Government.

(4) Type of organization.

(___) Sole proprietorship;

(___) Partnership;

(___) Corporate entity (not tax-exempt);

(___) Corporate entity (tax-exempt);

(___) Government entity (Federal, State, or local);

(___) Foreign government;

(___) International organization per 26 CFR 1.6049-4;

(___) Other ----------.

(5) Common parent.

(___) Offeror is not owned or controlled by a common parent;

(___) Name and TIN of common parent:

Name - ___ .
TIN - ___ .

(m) Restricted business operations in Sudan. By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) Prohibition on Contracting with Inverted Domestic Corporations—

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) Representation. The Offeror represents that--

(i) It is not an inverted domestic corporation; and

(ii) It is not a subsidiary of an inverted domestic corporation.

(o) Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.

(1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) Representation and Certifications. Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if—

(i) This solicitation includes a trade agreements certification (*e.g.*, 52.212-3(g) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) Ownership or Control of Offeror. (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation.

(1) The Offeror represents that it [____] has or [____] does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: ____

Immediate owner legal name: ____

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity:

[____] Yes or [____] No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest level owner CAGE code: ____

Highest level owner legal name: ____

(Do not use a “doing business as” name)

(q) Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that—

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that--

(i) It is [____] is not [____] a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is [____] is not [____] a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) Predecessor of Offeror. (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it [___] is or [___] is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: ___ (or mark "Unknown").

Predecessor legal name: ___ .

(Do not use a "doing business as" name).

(s) [Reserved].

(t) Public Disclosure of Greenhouse Gas Emissions and Reduction Goals. Applies in all solicitations that require offerors to register in SAM (12.301(d)(1)).

(1) This representation shall be completed if the Offeror received $7.5 million or more in contract awards in the prior Federal fiscal year. The representation is optional if the Offeror received less than $7.5 million in Federal contract awards in the prior Federal fiscal year.

(2) Representation. [Offeror to check applicable block(s) in paragraph (t)(2)(i) and (ii)].

(i) The Offeror (itself or through its immediate owner or highest-level owner) [___] does, [___] does not publicly disclose greenhouse gas emissions, i.e., makes available on a publicly accessible website the results of a greenhouse gas inventory, performed in accordance with an accounting standard with publicly available and consistently applied criteria, such as the Greenhouse Gas Protocol Corporate Standard.

(ii) The Offeror (itself or through its immediate owner or highest-level owner) [___] does, [___] does not publicly disclose a quantitative greenhouse gas emissions reduction goal, i.e., make available on a publicly accessible website a target to reduce absolute emissions or emissions intensity by a specific quantity or percentage.

(iii) A publicly accessible website includes the Offeror's own website or a recognized, third-party greenhouse gas emissions reporting program.

(3) If the Offeror checked "does" in paragraphs (t)(2)(i) or (t)(2)(ii) of this provision, respectively, the Offeror shall provide the publicly accessible website(s) where greenhouse gas emissions and/or reduction goals are reported: ___ .

(u)(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) Representation. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) Covered Telecommunications Equipment or Services--Representation. Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that--

(i) It [___] does, [___] does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it [___] does, [___] does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS--COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (DEC 2022)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (NOV 2021) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

(5) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(6) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services: [Contracting Officer check as appropriate.]

X (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with Alternate I (NOV 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

X (2) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

X (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

X (4) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

___ (5) [Reserved]

___ (6) 52.204-14, Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

____ (7) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

X (8) 52.209-6, Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment. (NOV 2021) (31 U.S.C. 6101 note).

___ (9) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).

____ (10) [Reserved]

____ (11) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) (15 U.S.C. 657a).

____ (12) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

____ (13) [Reserved]

____ (14)(i) 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

____ (ii) Alternate I (MAR 2020) of 52.219-6.

____ (15)(i) 52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

____ (ii) Alternate I (MAR 2020) of 52.219-7.

____ (16) 52.219-8, Utilization of Small Business Concerns (OCT 2022) (15 U.S.C. 637(d)(2) and (3)).

____ (17)(i) 52.219-9, Small Business Subcontracting Plan (OCT 2022) (15 U.S.C. 637(d)(4)).

____ (ii) Alternate I (NOV 2016) of 52.219-9.

____ (iii) Alternate II (NOV 2016) of 52.219-9.

____ (iv) Alternate III (JUN 2020) of 52.219-9.

____ (v) Alternate IV (SEP 2021) of 52.219-9.

____ (18) (i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).

____ (ii) Alternate I (MAR 2020) of 52.219-13.

____ (19) 52.219-14, Limitations on Subcontracting (OCT 2022) (15 U.S.C. 657s).

____ (20) 52.219-16, Liquidated Damages—Subcontracting Plan (SEP 2021) (15 U.S.C. 637(d)(4)(F)(i)).

____ (21) 52.219-27, Notice of Service-Disabled Veteran-Owned Small Business Set-Aside (OCT 2022) (15 U.S.C. 657f).

X (22) (i) 52.219-28, Post-Award Small Business Program Rerepresentation (OCT 2022) (15 U.S.C. 632(a)(2)).

____ (ii) Alternate I (MAR 2020) of 52.219-28.

____ (23) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) (15 U.S.C. 637(m)).

____ (24) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) (15 U.S.C. 637(m)).

____ (25) 52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).

____ (26) 52.219-33, Nonmanufacturer Rule (SEP 2021) (15 U.S.C. 657s).

X (27) 52.222-3, Convict Labor (JUN 2003) (E.O. 11755).

X (28) 52.222-19, Child Labor--Cooperation with Authorities and Remedies (DEC 2022) (E.O. 13126).

X (29) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

X (30)(i) 52.222-26, Equal Opportunity (SEP 2016) (E.O. 11246).

____ (ii) Alternate I (FEB 1999) of 52.222-26.

____ (31)(i) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

____ (ii) Alternate I (JUL 2014) of 52.222-35.

____ (32)(i) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

____ (ii) Alternate I (JUL 2014) of 52.222-36.

____ (33) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

X (34) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).

X (35)(i) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).

____ (ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

____ (36) 52.222-54, Employment Eligibility Verification (MAY 2022). (E. O. 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

____ (37)(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA–Designated Items (MAY 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

____ (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

____ (38) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (JUN 2016) (E.O. 13693).

____ (39) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (JUN 2016) (E.O. 13693).

____ (40)(i) 52.223-13, Acquisition of EPEAT® Registered Imaging Equipment (JUN 2014) (E.O.s 13423 and 13514).

_____ (ii) Alternate I (OCT 2015) of 52.223-13.

____ (41)(i) 52.223-14, Acquisition of EPEAT® Registered Televisions (JUN 2014) (E.O.s 13423 and 13514).

_____ (ii) Alternate I (JUN 2014) of 52.223-14.

____ (42) 52.223-15, Energy Efficiency in Energy-Consuming Products (MAY 2020) (42 U.S.C. 8259b).

____ (43)(i) 52.223-16, Acquisition of EPEAT®-Registered Personal Computer Products (OCT 2015) (E.O.s 13423 and 13514).

____ (ii) Alternate I (JUN 2014) of 52.223-16.

X (44) 52.223-18, Encouraging Contractor Policies to Ban Text Messaging While Driving (JUN 2020) (E.O. 13513).

X (45) 52.223-20, Aerosols (JUN 2016) (E.O. 13693).

____ (46) 52.223-21, Foams (JUN 2016) (E.O. 13693).

____ (47)(i) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).

____ (ii) Alternate I (JAN 2017) of 52.224-3.

X (48) (i) 52.225-1, Buy American--Supplies (OCT 2022) (41 U.S.C. chapter 83).

____ (ii) Alternate I (OCT 2022) of 52.225-1.

____ (49)(i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (DEC 2022) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.

____ (ii) Alternate I [Reserved].

____ (iii) Alternate II (DEC 2022) of 52.225-3.

____ (iv) Alternate III (JAN 2021) of 52.225-3.

____ (v) Alternate IV (OCT 2022) of 52.225-3.

____ (50) 52.225-5, Trade Agreements (DEC 2022) 19 U.S.C. 2501, et seq., 19 U.S.C. 3301 note).

____ (51) 52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

____ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

____ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (NOV 2007) (42 U.S.C. 5150

____ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).

____ (55) 52.229-12, Tax on Certain Foreign Procurements (FEB 2021).

____ (56) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

X (57) 52.232-30, Installment Payments for Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

X (58) 52.232-33, Payment by Electronic Funds Transfer—System for Award Management (OCT 2018) (31 U.S.C. 3332).

X (59) 52.232-34, Payment by Electronic Funds Transfer—Other than System for Award Management (JUL 2013) (31 U.S.C. 3332).

____ (60) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).

X (61) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).

____ (62) 52.242-5, Payments to Small Business Subcontractors (JAN 2017)(15 U.S.C. 637(d)(13)).

____ (63)(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

____ (ii) Alternate I (APR 2003) of 52.247-64.

____ (iii) Alternate II (NOV 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services: [Contracting Officer check as appropriate.]

X (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

_____ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

_____ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards--Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

_____ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards--Price Adjustment (MAY 2014) (29 U.S.C 206 and 41 U.S.C. chapter 67).

_____ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment--Requirements (MAY 2014) (41 U.S.C. chapter 67).

_____ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Requirements (MAY 2014) (41 U.S.C. chapter 67).

_____ (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022) (E.O. 13658).

_____ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

_____ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records--Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR Subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e) (1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1) in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause—

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

(ii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iii) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (NOV 2021) (Section 1634 of Pub. L. 115-91).

(iv) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(v) 52.219-8, Utilization of Small Business Concerns (OCT 2022) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(vi) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

(vii) 52.222-26, Equal Opportunity (SEP 2016) (E.O. 11246).

(viii) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

(ix) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

(x) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

(xi) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xii) 52.222-41, Service Contract Labor Standards (AUG 2018), (41 U.S.C. chapter 67).

(xiii) X (A) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).

_____ (B) Alternate I (March 2, 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).
(xiv) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment--Requirements (May 2014) (41 U.S.C. chapter 67.)

(xv) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Requirements (May 2014) (41 U.S.C. chapter 67)

(xvi) 52.222-54, Employment Eligibility Verification (MAY 2022) (E. O. 12989).

(xvii) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022) (E.O. 13658).

(xviii) 52.222-62, Paid Sick Leave Under Executive Order 13706 (*JAN* 2022) (E.O. 13706).

(xix) (A) 52.224-3, Privacy Training (*Jan* 2017) (5 U.S.C. 552a).

(B) Alternate I (*Jan* 2017) of 52.224-3.

(xx) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxi) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations. (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxii) 52.247-64, Preference for Privately-Owned U.S. Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days.

(End of clause)

52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 60 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 42 months.
(End of clause)

52.219-14 LIMITATIONS ON SUBCONTRACTING (OCT 2022)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) Definition. Similarly situated entity, as used in this clause, means a first-tier subcontractor, including an independent contractor, that--

(1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) Applicability. This clause applies only to--

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with subparts 19.8, 19.13, 19.14, and 19.15;

(4) Orders expected to exceed the simplified acquisition threshold and that are--

(i) Set aside for small business concerns under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to small business concerns under multiple-award contracts as described in 19.504(c)(1)(ii);

(5) Orders, regardless of dollar value, that are--

(i) Set aside in accordance with subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to concerns that qualify for the programs described in subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 19.504(c)(1)(ii); and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) Independent contractors. An independent contractor shall be considered a subcontractor.

(e) Limitations on subcontracting. By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for--

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause--

[Contracting Officer check as appropriate.]

___ By the end of the base term of the contract and then by the end of each subsequent option period; or

___ By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protege and its mentor approved by the Small Business Administration, the small business protege shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protege in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

52.222-42 STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES (MAY 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332.

THIS STATEMENT IS FOR INFORMATION ONLY: IT IS NOT A WAGE DETERMINATION
Employee Class Monetary Wage-Fringe Benefits

(End of clause)

52.233-2 SERVICE OF PROTEST (SEP 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from Angela Triplett at angela.m.triplett.civ@army.mil.

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

https://www.acquisition.gov/

(End of clause)

5152.233-4000 AMC-LEVEL PROTEST PROGRAM (Feb 2014) (LOCAL CLAUSE)

Prior to submitting an agency protest, it is preferable that you first attempt to resolve your concerns with the responsible contracting officer. However, you may also file a protest to the Headquarters (HQ), Army Materiel Command (AMC). The HQ AMC-Level Protest Program is intended to encourage interested parties to seek resolution of their concerns within AMC as an Alternative Dispute Resolution forum, rather than filing a protest with the Government Accountability Office (GAO) or other external forum. Contract award or performance is

suspended during the protest to the same extent, and within the same time periods, as if filed at the GAO. The AMC protest decision goal is to resolve protests within 35 calendar days from filing. To be timely, protests must be filed within the periods specified in FAR 33.103. If you want to file a protest under the HQ AMC-Level Protest Program, the protest must request resolution under that program and be sent to the address below.

Headquarters U.S. Army Materiel Command
Office of Command Counsel-Deputy Command Counsel
4400 Martin Road
Rm: A6SE040.001
Redstone Arsenal, AL 35898-5000
Fax: (256) 450-8840 or email usarmy.redstone.usamc.mbx.protests@army.mil

The AMC-Level Protest procedures are found at: http://www.amc.army.mil/amc/commandcounsel.html.

If internet access is not available, contact the contracting officer or HQ, AMC to obtain the HQ AMC-Level Protest Procedures.

(End of Clause)

Section J - List of Documents, Exhibits and Other Attachments

DD 254
The DD 254 is provided as a separate attachment.

Section L - Instructions, Conditions and Notices to Bidders

CLAUSES INCORPORATED BY FULL TEXT

52.212-1 INSTRUCTIONS TO OFFERORS--COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021)

(a) North American Industry Classification System (NAICS) code and small business size standard. The NAICS code(s) and small business size standard(s) for this acquisition appear elsewhere in the solicitation. However, the small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees if the acquisition--

(1) Is an 8(a) competitive

(b) Submission of offers. Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. Offers may be submitted on the SF 1449, letterhead stationery, or as otherwise specified in the solicitation.

(2) Past performance information, when included as an evaluation factor, to include recent and relevant contracts for the same or similar items and other references (including contract numbers, points of contact with telephone numbers and other relevant information); and

(3) If the offer is not submitted on the SF 1449, include a statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation. Offers that fail to furnish required representations or information, or reject the terms and conditions of the solicitation may be excluded from consideration.

(c) Period for acceptance of offers. The offeror agrees to hold the prices in its offer firm for 60 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(d) Late submissions, modifications, revisions, and withdrawals of offers:

(1) Offerors are responsible for submitting offers, and any modifications, revisions, or withdrawals, so as to reach the Government office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that offers or revisions are due.

(2)(i) Any offer, modification, revision, or withdrawal of an offer received at the Government office designated in the solicitation after the exact time specified for receipt of offers is “late” and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition; and--

(A) If it was transmitted through an electronic commerce method authorized by the solicitation, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of offers; or

(B) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of offers and was under the Government's control prior to the time set for receipt of offers; or

(C) If this solicitation is a request for proposals, it was the only proposal received.

(ii) However, a late modification of an otherwise successful offer, that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(3) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the offer wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(4) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(5) Offers may be withdrawn by written notice received at any time before the exact time set for receipt of offers. Oral offers in response to oral solicitations may be withdrawn orally. If the solicitation authorizes facsimile offers, offers may be withdrawn via facsimile received at any time before the exact time set for receipt of offers, subject to the conditions specified in the solicitation concerning facsimile offers. An offer may be withdrawn in person by an offeror or its authorized representative if, before the exact time set for receipt of offers, the identity of the person requesting withdrawal is established and the person signs a receipt for the offer.

(e) Contract award. The Government intends to evaluate offers and award a contract without discussions with offerors. Therefore, the offeror's initial offer should contain the offeror's best terms from a price and technical standpoint. However, the Government reserves the right to conduct discussions if later determined by the Contracting Officer to be necessary. The Government may reject any or all offers if such action is in the public interest; accept other than the lowest offer; and waive informalities and minor irregularities in offers received.

(i) Availability of requirements documents cited in the solicitation.

(1)(i) The GSA Index of Federal Specifications, Standards and Commercial Item Descriptions, FPMR Part 101-29, and copies of specifications, standards, and commercial item descriptions cited in this solicitation may be obtained for a fee by submitting a request to--GSA Federal Supply Service Specifications Section, Suite 8100, 470 East L'Enfant Plaza, SW, Washington, DC 20407, Telephone (202) 619-8925, Facsimile (202) 619-8978.

(ii) If the General Services Administration, Department of Agriculture, or Department of Veterans Affairs issued this solicitation, a single copy of specifications, standards, and commercial item descriptions cited in this solicitation may be obtained free of charge by submitting a request to the addressee in paragraph (i)(1)(i) of this provision. Additional copies will be issued for a fee.

(2) Most unclassified Defense specifications and standards may be downloaded from the following ASSIST websites:

(i) ASSIST (https://assist.dla.mil/online/start/).

(ii) Quick Search (http://quicksearch.dla.mil/).

(3) Documents not available from ASSIST may be ordered from the Department of Defense Single Stock Point (DoDSSP) by--

(i) Using the ASSIST Shopping Wizard (https://assist.dla.mil/wizard/index.cfm);

(ii) Phoning the DoDSSP Customer Service Desk (215) 697-2179, Mon-Fri, 0730 to 1600 EST; or

(iii) Ordering from DoDSSP, Building 4, Section D, 700 Robbins Avenue, Philadelphia, PA 19111-5094, Telephone (215) 697-2667/2179, Facsimile (215) 697-1462.

(4) Nongovernment (voluntary) standards must be obtained from the organization responsible for their preparation, publication, or maintenance.

(j) Unique entity identifier. (Applies to all offers that exceed the micro-purchase threshold, and offers at or below the micro-purchase threshold if the solicitation requires the Contractor to be registered in the System for Award Management (SAM).) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation "Unique Entity Identifier" followed by the unique entity identifier that identifies the Offeror's name and address. The Offeror also shall enter its Electronic Funds Transfer (EFT) indicator, if applicable. The EFT indicator is a four-character suffix to the unique entity identifier. The suffix is assigned at the discretion of the Offeror to establish additional SAM records for identifying alternative EFT accounts (see FAR subpart 32.11) for the same entity. If the Offeror does not have a unique entity identifier, it should contact the entity designated at www.sam.gov for unique entity identifier establishment directly to obtain one. The Offeror should indicate that it is an offeror for a Government contract when contacting the entity designated at www.sam.gov for establishing the unique entity identifier.

(k) Reserved.

(l) Debriefing. If a post-award debriefing is given to requesting offerors, the Government shall disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful and the debriefed offeror and past performance information on the debriefed offeror.

(3) The overall ranking of all offerors, when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award;

(l) Instructions Con't:

(1) Submit signed and dated proposal, other than cost and pricing data (price breakdown that includes labor and materials) to the email specified below at or before the specified time in this solicitation. Only emailed proposals will be accepted. Proposals are due 8 March 2023, 4:30 pm Eastern Time (ET). Only offers submitted on the SF 1449 will be accepted.

Email to:
Mr. Brandon N. Johnson at Contract Specialist, brandon.n.johnson24.civ@army.mil
Ms. Angela M. Triplett, Contracting Officer, angela.m.triplett.civ@army.mil

(2) Attached files must be Microsoft compatible and virus/malware free. Electronic media suspected by Government computers as possibly containing virus/malware will not be opened or considered. Facsimiles will not be accepted. All questions must be submitted in writing via email no later than three calendar days after release of solicitation. The point of contact responsible for supplying additional information and answering all inquiries is the Contract Specialist. Address all questions or concerns that the Offeror may have to the Contract Specialist, brandon.n.johnson24.civ@army.mil as well as the Contracting Officer angela.m.triplett.civ@army.mil.

If Government responses to technical questions affect the Statement of Work (SOW) requirements, an amendment to solicitation will be issued.

3. Contractor must be registered in the System for Award Management (SAM) with all required information provided prior to award.

(End of provision)

Section M - Evaluation Factors for Award

CLAUSES INCORPORATED BY FULL TEXT

52.212-2 EVALUATION--COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021)

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

(I) technical capability of the item offered to meet the Government requirement.

Subfactor I: Staffing Approach
Subfactor II: Management Approach
(II) price
(III) past performance (see FAR 15.304)

NO Business Identifying Marking are authorized for Technical exhibit I. UEI will be the only identifying marker for the proposal.

Technical information located on the PWS section 5-5.3.1 is applicable to subfactors I Staffing Approach and Subfactor II Management Approach.

Technical and past performance, when combined, are equal.
(b) Options. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)